



CHAPTER 42.

An Act to make provision for the conservation of water resources and for water supplies in Scotland and for purposes connected therewith.

[26th March 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

CENTRAL AUTHORITY.

1. It shall be the duty of the Secretary of State to promote the conservation of the water resources of Scotland and the provision by local authorities of adequate water supplies throughout Scotland, and to secure the collection, preparation, publication and dissemination of information and statistics relating to such water resources and water supplies and to appoint an advisory committee to advise the Secretary of State on these matters.

2. The Secretary of State may require any local water authority to—

- (a) carry out a survey of the existing consumption of and demand for water supplies in the area where they are supplying or are authorised to supply water and of the water resources in or available for that area ;
- (b) prepare an estimate of the future water supply requirements of that area ;
- (c) formulate proposals for meeting the existing or future water supply requirements of that area, including proposals for the joint use with any other water authority of any existing or proposed new source of water supply ;
- (d) submit a report on any of the aforesaid matters to the Secretary of State within such time as he may specify.

Power to
require local
water
authority to
carry out
surveys and
formulate
proposals.

PART I.

—cont.

Power of
Secretary
of State to
require
records and
information
from persons
abstracting
water.

3.—(1) The Secretary of State may make regulations requiring any class of persons to keep such records and furnish such returns as to the quantity and quality of water abstracted by them from any source and as to such other matters relating to the source as may be prescribed by the regulations :

Provided that—

- (a) the regulations shall not apply in a case where water is abstracted by an individual for his domestic or agricultural purposes only ;
- (b) in a case where the Secretary of State is satisfied that in all the circumstances compliance with any requirement of the regulations is impracticable or undue expense would be thereby incurred, he may direct that that requirement need not be complied with.

(2) The regulations may provide for the inspection of any records kept thereunder and of any apparatus used for the purpose thereof and for the taking of copies of and extracts from any such records and may confer rights of entry for the purpose of exercising any of the powers aforesaid and the section of this Act relating to entry of premises shall apply to any such right of entry.

(3) Any person who fails to comply with any requirement of the regulations shall be guilty of an offence against this Act.

Facilities for
obtaining
information
as to under-
ground water.

4.—(1) Any person who proposes to sink, for the purpose of searching for or abstracting water, a well or borehole intended to reach a depth of more than fifty feet below the surface, shall, before he begins to do so, give to the Committee of the Privy Council for Scientific and Industrial Research notice in writing of his intention to do so, and shall keep a journal of the progress of the work, which shall include measurements of the strata passed through, and all the levels at which water is struck and subsequently rests and shall allow any person authorised by the said Committee for the purpose, on the production of some duly authenticated document showing his authority, at all reasonable times—

- (a) to have free access to any such well or borehole ;
- (b) to inspect the well or borehole and the material excavated therefrom ;
- (c) to take specimens of such material and of water abstracted from the well or borehole ; and 10
- (d) to inspect and take copies of or extracts from the journal required to be kept under this section.

(2) The person sinking any such well or borehole shall, on completion or abandonment of the work, send a complete copy of the journal kept under the last foregoing subsection to the said

Committee, and shall also send to the Committee particulars of any test made, before such completion or abandonment, of the flow of water, specifying the rate of flow throughout the test and the duration of the test, and also, where practicable, specifying the water levels during the test and thereafter until the water has returned to its natural level.

(3) Where any such well or borehole is sunk in connection with an existing pumping station, the particulars of any test to be supplied to the said Committee shall also include the rate of pumping at the existing works during the test.

(4) Where the person sinking a well or borehole on any land is not the occupier of the land, the obligation to allow a person authorised by the said Committee to exercise the rights specified in paragraphs (a) to (d) of subsection (1) of this section shall be the obligation of the occupier as well as of the person sinking the well or borehole.

(5) Where any person contracts to sink any well or borehole on land belonging to or occupied by any other person and the execution of the work is under the control of the contractor, the contractor and no other person shall be deemed for the purposes of this section to be the person sinking the well or borehole.

(6) The person sinking a well or borehole or (if a different person) the owner or occupier of the land on which it is sunk may give notice in writing to the said Committee requiring them to treat as confidential any copy of or extract from the journal required to be kept under subsection (1) of this section or any specimen taken under that subsection, and the Committee shall thereupon not allow that copy, extract or specimen, except in so far as it contains or affords information as to water resources and supplies, to be published or shown to any person not being an officer of the Department of Scientific and Industrial Research or of the Secretary of State, unless the person giving the notice consents thereto :

Provided that, if at any time the Committee give notice to that person that in their opinion, his consent is unreasonably withheld, then that person may, within three months after the notice is given by the Committee, appeal to the Railway and Canal Commission, but if at the expiration of that period no such appeal has been made, or if after hearing the appeal the Commission do not make an order restraining them from doing so, the Committee may proceed as if such consent had been given.

(7) Any person who fails to comply with any obligation imposed on him by the foregoing provisions of this section shall be guilty of an offence against this Act.

PART II.

DUTIES OF LOCAL AUTHORITIES.

Local
authorities.

5.—(1) Subject to the provisions of this Act, the local authority for the purposes of the supply of water shall be—

- (a) in the case of a county the county council ; and
- (b) in the case of a burgh the town council ;

and the expression “ district ” in relation to a county council means the county and in relation to a town council the burgh ; and it shall be the duty of the local authority to carry into execution within their district the provisions of this Act relating to a local authority.

(2) A local authority may in accordance with the provisions of this Act carry out their duties under this Act with regard to the provision of water supplies either by themselves providing such supplies or by securing the provision of such supplies by another local authority or by a joint water board or otherwise.

(3) The expression “ limits of supply ” in relation to any local authority providing or authorised to provide a supply of water under this Act means the district of that authority, and, in relation to a local authority or joint water board providing or required to provide a supply of water under a local enactment, means the limits within which the authority or board are for the time being providing or required to provide a supply of water.

(4) The expression “ local water authority ” means a local authority providing or authorised to provide a supply of water under this Act or a local authority or joint water board providing or required to provide a supply of water under a local enactment.

Exercise by
local water
authority of
functions of
local authority.

6. Where by or under any enactment a local water authority (whether constituted before or after the commencement of this Act) are exercising or are required to exercise any of the functions of a local authority in relation to water supply in the district of that local authority or in any part thereof, the local authority shall cease to discharge in relation to that district or part thereof any functions which are functions of the local water authority.

Duty of local
authority to ascer-
tain sufficiency and
wholesomeness of
water supplies.

7. It shall be the duty of every local authority to take from time to time such steps as may be necessary for ascertaining the sufficiency and wholesomeness of the water supplies within their district.

Duty of local
authority to
provide
supply for
district.

8.—(1) It shall be the duty of every local authority to provide a supply of wholesome water to every part of their district where a supply of water is required for domestic purposes and can be provided at a reasonable cost.

(2) Without prejudice to the generality of the foregoing subsection, every local authority shall provide a supply of wholesome water in pipes to every part of their district where a supply of water is required for domestic purposes and shall take the pipes affording that supply to such point or points as will enable the buildings for which a supply is required for domestic purposes to be connected thereto at a reasonable cost, so however that this subsection shall not require a local authority to do anything which is not practicable at a reasonable cost or to provide such a supply to any part of their district where such a supply is already available at such point or points as aforesaid.

(3) If any question arises under this section as to whether a supply of water can be provided at a reasonable cost or as to whether anything is or is not practicable at a reasonable cost or as to the point or points to which pipes must be taken in order to enable buildings to be connected therewith at a reasonable cost, the Secretary of State, if requested to do so by ten or more local government electors in the district of the local authority, shall, after consulting the local authority, determine that question and the local authority shall give effect to his determination.

(4) Every local authority shall also provide a supply of water for the purpose of complying with any other obligation imposed on them by this Act and may, if they think fit, provide a supply to enable them to exercise any of the powers conferred on them by this Act or for any other purpose which they consider is in the interests of their district.

(5) So far as the district of a local authority is within the limits of supply of a local water authority, this section shall apply to the local water authority as if it were the local authority of the district and the enactments relating to the local water authority shall have effect accordingly.

9. In this Act and in any local enactment relating to the supply of water a supply of water for domestic purposes means a sufficient supply for drinking, washing, cooking, central heating and sanitary purposes but not for any bath having a capacity in excess of one hundred gallons, and includes—

- (a) a supply for the purposes of any profession carried on in any premises the greater part whereof is used as a house; and
- (b) where the water is drawn from a tap inside a house and no hosepipe or similar apparatus is used, a supply for watering a garden, for horses kept for private use and for washing vehicles kept for private use:

Provided that it shall not include a supply of water for the business of a laundry or any business of preparing food or beverages for consumption otherwise than on the premises.

PART II.
—cont.

The expression "domestic purposes" in any local enactment relating to the supply of water shall be construed in accordance with the foregoing definition, and the Secretary of State may by order make any incidental and consequential amendments of any such local enactment necessary or expedient for the purpose of carrying the provisions of this section into effect.

Water supplied
for domestic
purposes to be
wholesome.

10. Every local water authority shall provide in their mains and communication pipes a supply of wholesome water sufficient for the domestic purposes of all owners and occupiers of premises within their limits of supply who are entitled to a supply for those purposes.

Supply of water for non-domestic purposes.

Supply of
water for
purposes
other than
domestic.

11.—(1) Subject as hereinafter provided, a local water authority shall give a supply of water on reasonable terms and conditions for purposes other than domestic purposes to the owner or occupier of any premises within their limits of supply who requests them to give such a supply to those premises:

Provided that they shall not be required to give such a supply if their ability to meet existing obligations to supply water for any purposes or probable future requirements to supply water for domestic purposes, without having to incur unreasonable expenditure in constructing new waterworks for the purpose, would be endangered thereby.

(2) Any question arising as to the terms and conditions on which water is to be supplied under this section and any question whether the authority are justified in refusing to give a supply shall in default of agreement, be referred to the Secretary of State and the Secretary of State may determine it himself or, if he thinks fit, refer it for determination by arbitration.

(3) Where a local water authority are required to give a supply of water under this section, the powers of the authority and of persons supplied or proposed to be supplied by them to lay mains and pipes for providing a supply of water for domestic purposes and to break open streets for that purpose shall apply for the purpose of the provision of a supply under this section.

(4) Charges for water supplied under this section, whether by meter or otherwise, shall be recoverable in the manner in which rates levied by the local authority in respect of the premises supplied are recoverable.

Miscellaneous.

Compensation
for damage
resulting
from exercise
of powers
under this
Act.

12.—(1) Subject to the provisions of this section, a local authority or a local water authority shall make full compensation to any person who has sustained damage by reason of the exercise by the authority of any of their powers under this Act in relation to a matter as to which he has not himself been in default.

(2) Any question arising under this section as to the fact of damage or as to the amount of compensation shall in case of dispute be determined by arbitration.

(3) A claim for compensation against an authority under this section shall not be maintainable unless it is made to the authority within twelve months after the date on which it is alleged to have arisen.

(4) The provisions of this section shall be without prejudice to any other provisions in this Act relating to compensation.

- 13.—(1) If a complaint is made to the Secretary of State that—
- (a) a local authority or a local water authority have failed to do anything which they are required to do by or under this Act ;
 - (b) a local water authority supplying water under any local enactment have failed to give an adequate supply of water either as respects quantity or quality to any area which they are supplying, or have failed to give any supply which they have been lawfully required to give ; or
 - (c) a local water authority have failed to take such steps as are in the circumstances reasonable to obtain new powers or to extend their existing powers for the purpose of remedying any such failure as is mentioned in paragraph (b) hereof ;

Power of
Secretary of
State on
default of
authority.

or the Secretary of State is of opinion that an investigation should be made as to whether any authority have failed in any of the matters aforesaid, he may cause a local inquiry to be held into the matter.

(2) If after a local inquiry has been held in pursuance of the last foregoing subsection the Secretary of State is satisfied that there has been such a failure on the part of the authority in question, he may make an order declaring them to be in default and directing them for the purpose of remedying the default to discharge such of their functions in such manner and within such time or times as may be specified in the order or, as the case may be, to take such steps within such time or times as may be specified in the order to obtain new powers or to extend their existing powers.

(3) If the authority declared to be in default by an order made under the last foregoing subsection fail to comply with any requirements thereof within the time limited thereby for compliance with that requirement—

- (a) the Secretary of State may make an order transferring to another local authority or local water authority such of the functions of the authority in default as he thinks fit ; or

PART II.
—cont.

(b) the Court of Session may on the application of the Lord Advocate on behalf of the Secretary of State order specific performance of the functions and do otherwise as to the Court appears to be just.

(4) Any expenses incurred by the authority to whom functions are transferred by an order under this section (in this section referred to as "the transferee authority") in discharging those functions shall be defrayed in the first instance by the transferee authority in such manner as the order may provide and shall be a debt due by the authority in default to the transferee authority and recoverable accordingly. The transferee authority shall keep separate accounts of all income and expenditure in respect of the transferred functions.

(5) The authority in default shall have the like power of raising the money required to meet the expenses of the transferee authority as they have of raising money for defraying expenses incurred directly by themselves, and the payment of any such expenses as aforesaid shall, to such extent as may be sanctioned by the Secretary of State, be a purpose for which the authority in default may borrow money in accordance with the statutory provisions relating to borrowing by such authority.

(6) An order made under subsection (3) of this section may provide for the transfer to the transferee authority of such of the property and liabilities of the authority in default as in the opinion of the Secretary of State may be necessary or expedient, and when any such order is revoked the Secretary of State may, either by the revoking order or by a subsequent order, make such provision as appears to him to be desirable with respect to any property or liabilities acquired or incurred by the transferee authority in discharging any of the functions to which the order so revoked related.

PART III.

POWERS OF AUTHORITIES FOR THE PURPOSES
OF WATER SUPPLY.*Combination of authorities and variation of limits
of supply.*

Voluntary
combination
of local
authorities.

14.—(1) Two or more local authorities may, with the consent of the Secretary of State, combine for any of the purposes of any provision of this Act relating to local authorities on such terms and conditions as may be agreed between them and approved by the Secretary of State.

(2) The agreement entered into for the purposes of any such combination shall provide for the appointment of a joint committee or joint board which shall consist of representatives of the

local authorities concerned, and for the delegation to the joint committee or board of all or some of the functions relating to the purposes for which the combination has effect ; and the agreement may make provision for the transfer of property and liabilities, the adjustment of liabilities between the authorities, the settlement of differences and for such other matters as appear to be necessary or expedient for the purpose of carrying the combination into effect.

(3) The expenses of the joint committee or board shall be defrayed by the authorities concerned in the proportions specified or provided for in the agreement, and the proportion of expenses falling to be defrayed by a local authority shall be defrayed by that authority in like manner as if the expenses had been incurred by the local authority for the purposes for which the combination has effect.

(4) The Secretary of State may, on the application of the local authorities concerned make an order for the purpose of giving effect to any of the provisions of this section.

(5) Whether or not an order is made under the last preceding subsection, the Secretary of State may by order constitute the joint committee or board a body corporate by such name as may be determined by the order, and such joint committee or board shall have a common seal.

(6) For the purposes of this Act, a joint committee or board constituted by order under this section shall not by reason only of the fact that they were so constituted be deemed to be supplying water under a local enactment.

(7) The Secretary of State may, if it appears to him expedient so to do, make an order withdrawing the consent given by him to the combination under subsection (1) of this section of any two or more local authorities and dissolving the combination ; and any such order may contain provisions regulating the rights and liabilities of the authorities concerned and such other provisions as are necessary or proper in the circumstances.

(8) The provisions of Part I of the First Schedule to this Act shall apply to the making of applications and orders under subsection (4) of this section and the provisions of Part II of the said Schedule shall apply to the making of orders under subsection (7) of this section.

15.—(1) If it appears to the Secretary of State to be of advantage to the districts of two or more local authorities or to parts of those districts, that those authorities should be combined for any of the purposes of any provision of this Act relating to local authorities, he may make an order combining the authorities as respects their districts or parts thereof for such of the purposes aforesaid as are specified in the order.

Compulsory
combination
of local
authorities.

PART III.
—cont.

(2) An order under this section may provide—

- (a) for the appointment of a joint committee or joint board consisting of representatives of the local authorities concerned and for the constitution of the joint committee or joint board as a body corporate ;
- (b) for the delegation to the joint committee or joint board of such of the functions of the authorities concerned relating to the purposes for which the combination has effect as are specified in the order ; and
- (c) for the transfer of property and liabilities ;

and shall specify the manner in which the expenses of the combination are to be defrayed by the local authorities concerned, and the order may contain such incidental, consequential and supplementary provisions as the Secretary of State thinks necessary or expedient for the purposes of the order.

(3) The provisions of Part II of the First Schedule to this Act shall apply to the making of orders under subsection (1) of this section.

Combination
of local water
authorities
and transfer
of under-
takings by
agreement or
compulsorily,

16.—(1) The Secretary of State may, on the application of the local water authorities concerned, make an order providing for—

- (a) the combination of two or more local water authorities, by agreement, for any of the purposes of any enactment relating to the supply of water which applies to any of those authorities on such terms and conditions as may be agreed between them ; or
- (b) the joint exercise by two or more local water authorities, by agreement, of any of the functions of the authorities relating to the supply of water ; or
- (c) the transfer, by agreement, to a local water authority of the undertaking or part of the undertaking of any other person supplying water, whether under an enactment or otherwise.

(2) Where it appears to the Secretary of State to be expedient for the purpose of securing a better supply of water to make provision for any of the matters for which, if the authorities or persons concerned agreed thereto, provision could be made under the last foregoing subsection, he may by order provide compulsorily for any of those matters.

(3) Any order made under this section may contain such incidental, consequential and supplementary provisions as the Secretary of State thinks necessary or expedient for the purposes of the order, and in particular, but without prejudice to the generality of the foregoing provision, may provide for the appointment of a joint committee or joint board consisting of representatives of the local water authorities concerned and for the constitution of the joint committee or joint board as a body corporate

and for the transfer of property and liabilities and for the amendment or repeal of any local enactment relating to any of the authorities.

(4) The provisions of Part I of the First Schedule to this Act shall apply to the making of applications and orders under subsection (1) of this section, and the provisions of Part II of the said Schedule shall apply to the making of orders under subsection (2) of this section.

(5) An order shall not be made under this section for the constitution of any joint committee or joint board which could be constituted under either of the last two foregoing sections.

17.—(1) The Secretary of State may on the application of the local water authorities concerned by order vary the limits of supply of one of those authorities so as to include within those limits the whole or part of the area comprised within the limits of supply of any of the other authorities concerned. Variations of limits of supply

(2) Any order made under this section may contain such incidental, consequential and supplementary provisions, including provisions for the amendment or repeal of any local enactment as the Secretary of State thinks necessary or expedient.

(3) The provisions of Part I of the First Schedule to this Act shall apply to the making of applications and orders under this section.

18.—(1) If the Secretary of State is satisfied that the owners or occupiers of premises in an area outside the limits of supply of a local water authority desire to obtain a supply of water from that authority and that the giving of the supply is not likely to interfere with the supply of water for any purposes within the said limits, he may, on the application of that authority, and with the consent of any local water authority within whose limits of supply the area is situated, by order authorise the applicants to supply water in that area, or such part thereof as may be specified in the order, on such terms and conditions as may be so specified : Power of Secretary of State to authorise local water authority to supply premises outside their limits of supply.

Provided that a consent required for the purposes of this subsection shall not be unreasonably withheld, and any question whether or not consent is unreasonably withheld shall be referred to and determined by the Secretary of State.

(2) Where an authority are by virtue of an order under the last foregoing subsection supplying water to premises, any other local water authority within whose limits of supply those premises were at the date of the order situated may, in the absence of any agreement to the contrary, at any time give not less than three months' notice to the supplying authority that they are able and intend to give a supply of water to the premises in question :

PART III.
—*cont.*

Provided that a notice under this subsection shall not be valid unless it covers all the premises to which water is being supplied by virtue of the order made under the last foregoing subsection.

(3) When, after the expiration of a notice given under the last foregoing subsection, the authority giving the notice commence to supply water to the premises covered by the notice, the authority who obtained the Secretary of State's order shall, except for the purpose of recovering water rates, water charges and any other charges or expenses recoverable by them, and of removing any pipes, plant or apparatus belonging to them, cease to have any rights or duties in respect of a supply to those premises :

Provided that the authority who obtained the Secretary of State's order shall not remove any pipes, plant or apparatus which they are required by the authority giving the notice to leave in position, and any such pipes, plant or apparatus shall vest in the authority giving the notice.

(4) The authority giving the notice shall pay to the authority who obtained the Secretary of State's order such portion of any expenses reasonably incurred by them for the purpose of giving a supply to those premises and such sum in respect of any pipes, plant and apparatus vested in the authority giving the notice by the last foregoing subsection, as may be agreed, or, in default of agreement, determined by arbitration.

(5) While an authority are, by virtue of an order made under subsection (1) of this section, authorised to supply water outside their limits of supply, the area specified in the order shall for the purposes of any enactment relating to the supply of water be deemed to be within those limits.

Supply of
water in
bulk.

19.—(1) A local water authority may enter into an agreement with any other persons, whether a local water authority or not, for the giving by those other persons, and the taking by the authority, of a supply of water in bulk for any period and on any terms and conditions, and, where the supply is to be given by persons who are themselves a local water authority, either within or outside the limits of supply of that authority.

(2) Where it appears to the Secretary of State that it is expedient that a local water authority should give to any other local water authority and that that other authority should take, a supply of water in bulk, either within or outside the limits of supply of the authority by whom the supply is to be given, and he is satisfied that the giving and taking of such a supply cannot be secured by agreement, he may, by order, require the respective authorities to give and to take such supply as aforesaid and on such terms and conditions as may be provided in the order.

(3) An agreement or order under this section may, in the case where the supply is being given by a local authority, provide for the appointment of representatives of the authority taking the

supply as members of the appropriate committee or sub-committee of the authority giving the supply.

PART III.
—cont.

(4) For the purpose of laying any pipes or installing any apparatus connected therewith, being pipes or apparatus required for giving or taking a supply of water in pursuance of an agreement or order made under this section, a local water authority may exercise either within or outside their limits of supply, the like powers with respect to laying mains and breaking open streets as are exercisable by them under this Act for the purpose of laying mains, but subject to the like conditions and obligations.

(5) The provisions of Part II of the First Schedule to this Act shall apply to the making of orders under subsection (2) of this section :

Provided that if the Secretary of State is satisfied that by reason of an exceptional shortage of rain, or by reason of any accident or other unforeseen circumstances, a serious deficiency in the supply of water exists or is threatened in any locality, the said provisions of the First Schedule to this Act shall not apply to the making of an order under this section, and the Secretary of State may, if he considers that the interests of public health so require, direct that the provisions of this Act with respect to laying mains and breaking open streets shall, in relation to any works to be carried out for the purposes of that order, have effect subject to such modifications as he may think necessary for the avoidance of delay, but any agreement or order to which this proviso applies shall cease to have effect at the expiration of such period not exceeding two years as the Secretary of State may direct.

(6) Nothing in this section shall affect any right of a navigation authority under any enactment to prohibit, or impose restrictions on, the supply of water in bulk by a local water authority.

Acquisition of land and water rights.

20.—(1) A local water authority shall have power under this section to acquire land (other than water rights) by agreement, whether by way of purchase, feu, lease, excambion or otherwise, for any of the purposes of their undertaking.

Power of
local water
authority to
acquire land
by agreement
or com-
pulsorily.

(2) Without prejudice to the generality of the foregoing subsection, a local water authority may acquire land thereunder for the purpose of erecting houses thereon for the use of persons employed by them for the purposes of their undertaking.

(3) The Lands Clauses Acts (except the provisions relating to the acquisition of land otherwise than by agreement and the provisions relating to access to the special Act, and except sections ninety-three to ninety-eight and sections one hundred and twenty to one hundred and twenty-five of the Lands Clauses

PART III.

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8 & 9 Vict.

c. 19.

8 & 9 Vict.

c. 33.

Consolidation (Scotland) Act, 1845), section six of the Railway Clauses Consolidation (Scotland) Act, 1845, and Part IV of the Fourth Schedule to this Act are subject to any necessary adaptations and modifications incorporated with this section.

(4) A local water authority may be authorised by means of a compulsory purchase order made by them and confirmed by the Secretary of State to purchase land (other than water rights) compulsorily under this section for any of the purposes of their water undertaking or proposed water undertaking.

(5) The provisions of the Second Schedule to this Act shall have effect with respect to compulsory purchase orders made under this section.

(6) Nothing in this section shall authorise the compulsory acquisition of land which is the site of an ancient monument or other object of archaeological interest or any land which is the property of any local authority within the meaning of the Local Authorities Loans (Scotland) Acts, 1891 and 1893, or has been acquired for the purposes of their undertaking by any persons authorised by any enactment to construct, work or carry on any railway, canal, inland navigation, dock, harbour, tramway, gas, electricity, water or other public undertaking.

(7) Where a compulsory purchase order made under this section authorises the acquisition of any land forming part of a common or open space or of land belonging to, and inalienably held by, the National Trust for Scotland for preservation for the benefit of the nation under or in accordance with the provisions of section twenty-two of the order confirmed by the National Trust for Scotland Order Confirmation Act, 1935, the order, so far as it relates to the acquisition of such land, shall, subject to the next following subsection, be subject to special parliamentary procedure.

(8) The last foregoing subsection shall not apply where the Secretary of State is satisfied that there has been or will be given in exchange for such land other land, not being less in area (unless the persons in whom the land acquired was vested otherwise agree) and being equally advantageous to the persons, if any, entitled to common or other rights and to the public, and that the land given in exchange has been or will be vested in the persons in whom the land acquired was vested and subject to the like rights, trusts and incidents as attached to the land acquired, and certifies accordingly.

Before giving any such certificate, the Secretary of State shall give public notice of the proposed exchange, and shall afford opportunities to all persons interested to make representations and objections in relation thereto, and shall, if it appears to him expedient so to do having regard to any representations or objections made, hold a local inquiry.

(9) A local water authority may be authorised to purchase compulsorily, in accordance with the provisions of this section, or may acquire by agreement, land for giving in exchange for any land such as is mentioned in subsection (7) of this section which they are authorised to acquire by a compulsory purchase order made under this section.

(10) In this section the expression "common" includes any town or village green, and the expression "open space" means any land laid out as a public garden or used for the purposes of public recreation, and any disused burial ground.

21.—(1) A local water authority may acquire by agreement rights to take water from any stream or other source, but no such agreement shall have effect unless the Secretary of State has made an order approving it; and the enactments (other than Part IV of the Fourth Schedule to this Act) mentioned in subsection (3) of the last foregoing section are, subject to any necessary adaptations and modifications, incorporated in this subsection.

Provisions
with regard
to the
acquisition
of water
rights.

(2) The Secretary of State may, on the application of a local water authority, by order provide for the compulsory acquisition by them of such rights to take water from any stream or other source as may be specified in the order, and such order shall incorporate, subject to any necessary modifications, the several provisions of the Lands Clauses Acts and other enactments specified in paragraph 1 of the Second Schedule to this Act.

(3) Where the acquisition of water rights by a local water authority under this Part of this Act will result in the impounding of any stream—

(a) the Secretary of State shall not approve any agreement for the acquisition of such rights unless he is satisfied that the agreement requires the authority to provide an adequate amount of compensation water or (as the case may be) ensure the maintenance of an adequate flow of water in the stream either by a specific limitation upon the quantity of water to be abstracted in a stated period or by prohibiting the authority from reducing the rate of flow of water in the stream below the point of abstraction to less than a stated rate, and incorporates the appropriate provisions of Part III of the Fourth Schedule to this Act subject to such modifications and adaptations as the Secretary of State may approve; or

(b) the Secretary of State shall, in any order for the compulsory acquisition of such rights, prescribe the quantity of compensation water to be provided by the authority

PART III.
—cont.

or (as the case may be) either the maximum quantity of water to be abstracted in a stated period or the minimum rate of flow to be maintained, and shall incorporate in the order the appropriate provisions of the said Part III subject to such modifications and adaptations as he thinks fit.

(4) Where the acquisition of water rights by a local water authority under this Part of this Act will, in the opinion of the Secretary of State, substantially reduce the flow of any stream—

- (a) the Secretary of State shall not approve any agreement for the acquisition of such rights unless he is satisfied that the agreement contains adequate provisions for limiting the extent to which, and the circumstances in which, water may be taken from the stream, and incorporates the appropriate provisions of Part III of the Fourth Schedule to this Act subject to such modifications and adaptations as he may approve ; or
- (b) the Secretary of State shall in any order for the compulsory acquisition of such rights prescribe the extent to which, and the circumstances in which, water may be taken, and shall incorporate in the order the appropriate provisions of the said Part III subject to such modifications and adaptations as he thinks fit.

(5) In assessing the quantity of compensation water to be provided or the maximum quantity of water to be abstracted or the minimum rate of flow to be maintained under any such agreement or order or in determining the extent to which and the circumstances in which water may be taken under any such agreement or order, the Secretary of State shall have regard to all the circumstances of the particular case, including—

- (a) the interests of public health ;
- (b) the character and flow of the stream ;
- (c) the extent to which the stream is or may in the future be used for industrial purposes or for the purposes of any public undertaking or for fisheries, water supply by other undertakers, agriculture, transport and navigation ;
- (d) the effect on land drainage or on any canal or inland navigation of any alterations in the flow of the stream ;

and shall secure, so far as practicable, the protection of the rights of riparian owners and of other owners of lands or salmon fishings.

(6) The provisions of Part III of the First Schedule to this Act shall apply to the approval of agreements under this section.

(7) The provisions of Part I of the First Schedule to this Act shall apply to the making of applications and orders under subsection (2) of this section.

PART III.
—cont.

22. Notwithstanding anything in the Lands Clauses Acts, a local water authority may hold and use for the purposes of their water undertaking for such time as they think fit any land acquired or appropriated by them for such purposes, and may from time to time sell, feu, lease, excamb or otherwise dispose of any such land in such manner, for such consideration and on such terms and conditions as they think fit, and, in particular, may reserve to themselves any water rights or other servitudes in, over or belonging to the land disposed of and may dispose of the land subject to such other reservations, conditions, restrictions and provisions with respect to the use of water, the carrying on of noxious trades or the discharge or deposit of manure, sewage or other foul matter as they think fit : Power of local water authority to hold and dispose of land.

Provided that the consent of the Secretary of State shall be required—

- (a) in the case of any sale or feu, otherwise than by public roup ;
- (b) in the case of any such excambion ;
- (c) in the case of any such let where the let is for a period exceeding twenty-one years.

23. A local authority may undertake to pay to any person supplying water, or guarantee payment to any such person of, such sum or sums as may be agreed as consideration for the giving by that person of a supply of water so as he can lawfully do so, within any part of the authority's district and the execution by him of any works necessary for that purpose. Power of local authority to give guarantee for supply of water.

Execution of works.

24.—(1) For the purpose of providing their district or any part thereof with a supply of water under this Act, a local authority may, subject to the provisions of this Act and without prejudice to any other powers competent to them— Power to carry out works, etc

- (a) construct, or alter or acquire by purchase, lease or otherwise, or renew or maintain waterworks ;
- (b) acquire by purchase, lease or otherwise any undertaking belonging to persons, whether a local water authority or not, who are supplying or are authorised to supply water in any part of the authority's district ;

PART III.
—cont.

- (c) contract with any person for a supply by that person of water in bulk or otherwise ; and
- (d) erect and maintain houses for the use of persons employed by them for the purposes of their undertaking :

Provided that, before exercising any of the powers aforesaid which involve the expenditure of capital moneys, the local authority shall submit to the Secretary of State their proposals with respect thereto for his consent and shall not exercise any of the said powers involving such expenditure except with his consent.

(2) Where under this section a local authority propose to acquire the water undertaking of persons, whether a local water authority or not, who are supplying or are authorised to supply water outside the district of the authority, they shall give notice in writing to the local authority of every other district which is wholly or in part within the area in which those persons are supplying or are authorised to supply water, and shall not proceed with their proposal unless the consent of each such authority has been obtained :

Provided that consent under this subsection shall not be unreasonably withheld, and any question whether or not a consent is unreasonably withheld shall be referred to and determined by the Secretary of State.

Breaking open
of streets.

25. The provisions of Part I of the Third Schedule to this Act shall have effect in relation to the breaking open of streets by a local water authority for the purpose of carrying out any works which they are authorised to execute by or under ^{their Act or any} local enactment incorporating any provisions of the Fourth Schedule to this Act.

Power to lay
mains, etc.

26.—(1) A local water authority may, within their limits of supply and also, subject to the provisions of the next succeeding section, outside those limits lay a main—

- (a) in, under or over any street or under any cellar or vault below any street ; and
- (b) in, on or over any land not forming part of a street, after giving reasonable notice to the owner and the occupier of that land ;

and may from time to time inspect, repair, alter, or renew, or may at any time remove a main previously laid whether by virtue of this section or otherwise.

(2) Where an authority in the exercise of their powers under this section lay a main in, on, or over any land not forming part of a street, or inspect, repair, alter, renew, or remove a main

laid in or over any such land, they shall from time to time pay compensation to every person interested in that land for any damage done to or injurious affection of that land by reason of the laying, inspection, repair, alteration, renewal, or removal of the main, and any question as to the amount of compensation to be paid under this subsection shall, in case of dispute, be determined by arbitration.

(3) A local water authority may erect and maintain in any street notices indicating the position of underground water fittings used for controlling the flow of water through their mains whether laid by virtue of this section or otherwise and may affix such a notice to any house or other building, or any wall or fence.

27.—(1) Where a local water authority in the exercise of their powers under the last foregoing section of this Act propose to lay a main outside their limits of supply, the provisions of that section shall apply and the authority shall, in addition—

Conditions as
to laying
mains outside
limits of
supply.

- (a) in the case of each local authority district in which they propose to lay a main, publish by advertisement in a newspaper circulating in the district a notice describing the nature of their proposals, specifying the land directly affected thereby, and naming a place where a plan illustrative of their proposals may be inspected at all reasonable hours by any person free of charge; and
- (b) serve, not later than the date of the publication of the said advertisement, a copy of the notice on the local authority of the district and on the highway authority for any highway in which they propose to lay a main.

(2) If, within forty days after the publication of the notice referred to in the foregoing subsection, notice of objection to their proposals is served on the authority either by any local authority or any highway authority referred to in paragraph (b) of subsection (1) of this section or by any owner or occupier of land directly affected by the proposals, they shall not proceed with their proposals, unless all objections so made are withdrawn or the Secretary of State after a local inquiry has approved the proposal either with or without modification:

Provided that where no objection is duly made by any local authority or any highway authority of the district in which the main is proposed to be laid or where every such objection is withdrawn, the Secretary of State may dispense with a local inquiry if he is satisfied that every objection by any owner or occupier not withdrawn relates exclusively to matters which can be dealt with by the tribunal by whom compensation is to be assessed.

PART III.
—cont.

(3) The foregoing provisions of this section with respect to the publication and service of, and objections to, the notices therein referred to shall not apply where the work which the authority propose to carry out outside their limits of supply consists only of laying a main in a highway and they have obtained the consent of the local authority of the district within which that highway is situated and also, where that other authority is not the highway authority for the highway in question, the consent of the highway authority.

Laying and maintenance of communication and supply pipes, and vesting of communication pipes.

28.—(1) Where a service pipe is required to be laid for the purpose of supplying water to premises for domestic purposes, the local water authority shall, at the expense of the owner of the premises, lay the communication pipe and also so much of the supply pipe as is to be laid in a street.

(2) The provisions of Part II of the Third Schedule to this Act (which relate to the laying and maintenance of communication pipes and supply pipes and other matters) shall apply in the case of all local water authorities.

(3) All communication pipes whether laid before or after the commencement of this Act shall vest in the local water authority, and the authority shall at their own expense carry out any necessary work of maintenance, repair or renewal of such pipes and any work on their mains incidental thereto.

(4) The local water authority shall also carry out any necessary works as aforesaid in the case of so much of any supply pipe as is laid in a street and may recover as a civil debt from the owner of the premises the expenses reasonably incurred by them in so doing, but without prejudice to the rights and obligations as between themselves of the owner and the occupier of the premises.

Power to local authority to provide public wells, fountains, etc.

29.—(1) A local authority may construct and maintain public pumps, wells, standpipes or other works for supplying water for the use of the inhabitants of their district or any part thereof.

(2) A local authority may erect and maintain or authorise to be erected and maintained in any street or public place within their district any drinking fountain or trough :

Provided that if the authority are not the highway authority in the case of any street no such fountain or trough shall be erected in that street except with the consent of the highway authority but that consent shall not be unreasonably withheld, and any question whether or not consent is unreasonably withheld shall be referred to and determined by the Secretary of State.

Powers with respect to polluted sources of supply.

PART III.

—cont.

30. If a local authority are satisfied that any public well, drinking fountain or other work within their district and vested in them or any work constructed under the last foregoing section is no longer required or that the water obtained therefrom is so polluted as to be injurious or dangerous to health and that it is not reasonably practicable to remedy the cause of the pollution, they may close the well, fountain or other work or restrict the use of the water obtained therefrom.

Power to close,
or restrict
use of water
from, public
wells, etc.

31.—(1) If a local authority are of opinion that the water in or obtained from any source of supply not vested in them, being water which is or is likely to be used within their district for domestic purposes or in the preparation of food or drink for human consumption, is or is likely to become so polluted as to be injurious or dangerous to health, the authority may apply to the sheriff, and the sheriff, after giving the person to whom the source of supply belongs and any other person alleged to have control of the source of supply an opportunity of being heard, may make an order directing the source of supply to be permanently or temporarily closed or cut off, or the water therefrom to be used for certain purposes only, or such other order as appears to the sheriff to be necessary to prevent injury or danger to the health of the persons using the water or consuming food or drink prepared therewith or therefrom.

Power to close,
or restrict use
of water from,
polluted
source of
supply.

The sheriff shall hear any person using the water who claims to be heard and may cause the water to be analysed and examined at the cost of the local authority.

(2) If a person on whom an order is made under this section fails to comply therewith, the sheriff may, on the application of the local authority, authorise the authority to do whatever may be necessary for giving effect to the order, and any expenses reasonably incurred by the authority in so doing may be recovered by them from the person in default.

Water charges.

32.—(1) Where water is supplied by meter by a local water authority, the charge in respect of the supply shall be calculated by reference to the amount of water consumed on the premises :

Supplies by
meter to be
paid for
according to
water
consumed.

Provided that in calculating any such charge there shall be deducted the amount of any rate applicable to the supply of water payable in respect of the premises or, where both a public water rate and a domestic water rate are so payable, the amount of the domestic water rate only, or if such charge does

PART III.
—cont.

not exceed the amount of any such rate or domestic water rate, as the case may be, no charge shall be payable under this section.

(2) Charges payable under this section, including charges for any meter supplied by the authority, shall be recoverable in the manner in which rates levied by the local authority in respect of the premises supplied are recoverable.

Power to
require supply
to certain pre-
mises and for
certain pur-
poses to be
taken by
meter.

33. A local water authority shall not be bound to supply with water otherwise than by meter—

- (a) any premises used as a house whereof a part is used by the same occupier for any business, trade or manufacturing purpose for which water is required, or any agricultural lands and heritages ;
- (b) any public institution, hospital, asylum, nursing home, sanatorium, school, club, hostel, camp, assembly hall, place of public entertainment, hotel or restaurant or any licensed premises for which a licence is required under the Licensing (Scotland) Acts, 1903 to 1934 ;
- (c) any boarding-house capable of accommodating twelve or more persons, including the persons usually resident therein ; or
- (d) any premises which are used solely for business, trade or manufacturing purposes and in which a supply of water for domestic purposes only is required.

Additional &
charges where
water supplied
for domestic
purposes is
used for other
purposes.

34.—(1) Where water which a local water authority supply for domestic purposes—

- (a) is used for watering a garden ; or
- (b) is used for horses, washing vehicles or other purposes in stables, garages or other premises where horses or vehicles are kept,

the authority may in either case, if a hosepipe or similar apparatus is used, charge in respect of that use of the water an additional annual sum not exceeding ten shillings or such other reasonable sum as the authority, having regard to the circumstances of any particular case, may determine.

(2) Where in either of such cases the water used is drawn from a tap outside a house but no hosepipe or similar apparatus is used, the authority may charge an additional annual sum not exceeding one-half the maximum sum chargeable under the last foregoing subsection.

Power to
require
supplies for
refrigerating.

35. Where a person who takes a supply of water for domestic purposes from a local water authority otherwise than by meter desires to use any of the water so supplied—

- (a) for operating a water-cooled refrigerating apparatus ; or

- (b) for operating any apparatus depending while in use upon a supply of continuously running water, not being an apparatus used solely for heating the water; or
- (c) for cleaning, regenerating or supplying motive power to an apparatus used for softening water,
- PART III.
—cont.
or water-softening apparatus, etc. to be taken by meter.

the authority may require that all water so used shall be taken by meter :

Provided that no charge shall be made under this section in respect of a water-cooled refrigerating apparatus used within a house for which the supply of water is taken if one such apparatus only is used, or in respect of a water softening apparatus used within a house for which the supply of water is taken if one such apparatus only is used and the water softened thereby is used solely for domestic purposes.

36. Where water which a local water authority supply for domestic purposes is used by means of a hosepipe or similar apparatus for watering a garden or for horses, washing vehicles or other purposes in stables, garages or other premises where horses or vehicles are kept, and the consumer takes also a supply of water by meter for purposes other than domestic, the authority may require that all water used by him by means of the hosepipe or apparatus shall be taken by meter.

Power to require supply for hosepipe to be taken by meter in certain cases.

37.—(f) No person shall be entitled to demand or to continue to receive from a local water authority a supply of water to any habitation to which this subsection applies unless he has—

Provisions as to supply to tents, vans, sheds, etc.

- (a) agreed with the authority to take a supply of water by meter and to pay to them such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the required supply and will cover other standing charges incurred by them in order to meet the possible maximum demand for his habitation, and will yield a reasonable return on the cost of the water supplied; and
- (b) secured to the reasonable satisfaction of the authority by way of deposit or otherwise, payment of such a sum as may be reasonable having regard to his possible maximum demand for water.

The annual sum to be so paid and the security to be so given shall be determined, in default of agreement, by the sheriff, whose decision shall be final.

(2) The habitations to which subsection (1) of this section applies are tents, vans or other conveyances, whether on wheels or not, and sheds or similar structures.

PART III.
—cont.17 & 18 Vict.
c. 91.

(3) Where a supply of water is provided for domestic purposes for any house or habitation (not being a habitation to which subsection (1) of this section applies) which is not entered in the valuation roll or of which no account is taken in estimating under the Lands Valuation (Scotland) Act, 1854, and the enactments amending that Act, the yearly value of the lands and heritages of which such house or habitation forms part, the occupier thereof shall pay to the local water authority in respect of such supply such annual sum as may be reasonable having regard to his possible maximum demand for water.

The amount of the annual sum to be so paid shall be determined in default of agreement by the sheriff, whose decision shall be final.

Register of
meter to be
evidence.

38.—(1) Where a local water authority supply water by meter, the register of the meter shall be *prima facie* evidence of the quantity of water consumed.

(2) Any question arising between the authority and a consumer with respect to the quantity of water consumed may, on the application of either party, be determined by the sheriff.

(3) If the meter on being tested is proved to register incorrectly to any degree exceeding five per cent.—

(a) the meter shall be deemed to have registered incorrectly to that degree since the last occasion but one before the date of the test on which a reading of the index of the meter was taken by the authority, unless it is proved to have begun to register incorrectly on some later date; and

(b) the amount of any refund to be made to, or of any extra payment to be made by, the consumer shall be paid or allowed by the authority or paid by the consumer, as the case may be, and in the case of an extra payment shall be recoverable in the manner in which rates levied by the local authority in respect of the premises supplied are recoverable.

*Borrowing.*Power to
borrow.19 & 20 Geo. 5.
c. 25.

39.—(1) A local authority who incur expenditure for the purpose of providing a supply of water under this Act may, subject to the provisions of subsection (2) of section twenty-three of the Local Government (Scotland) Act, 1929, borrow such sums as may be required by them for the purposes of their water undertaking in order to meet any expenditure of a capital nature or the cost of executing any work or providing any plant or doing any other thing where, having regard to the nature of the work, plant or thing, the cost ought to be spread over a period of years:

Provided that the sums so borrowed shall be repaid within such period not exceeding sixty years as the Secretary of State may determine.

(2) Nothing in this Act shall authorise the exercise of any power of borrowing money or the making of any issue of capital otherwise than in compliance with the provisions of the Local Authorities Loans Act, 1945, or of any Defence Regulation within the meaning of the Supplies and Services (Transitional Powers) Act, 1945, for the time being having effect by virtue of that Act, or of any order made under any such Regulation.

PART III.
—cont.

40. A local authority who are a party to a combination of local authorities under this Act or under a local enactment relating to water supplies may lend money to any other local authority who are a party to the combination for any of the purposes for which the last mentioned authority have power to borrow under this Act or under any such local enactment, and the first mentioned authority may borrow money for the purpose.

Power of local
authority to
lend money to
other local
authority in
combination.

41. Where a joint water board have power to borrow money, the power of the Public Works Loan Commissioners to make loans to a local authority shall extend to the making of loans to that board for any purpose for which the Commissioners may make loans to a local authority.

Loans by
Public Works
Loan Com-
missioners to
joint water
boards.

Authorities supplying water under local enactments.

42.—(1) The Secretary of State may, on the application of a local water authority providing or authorised to provide a supply of water under a local enactment, make an order authorising them, subject to the provisions of the order—

Orders of
Secretary of
State
conferring
powers on
local water
authorities
supplying
water under
local
enactment.

- (a) to construct or alter, or acquire by purchase, lease or otherwise, or renew or maintain waterworks ;
- (b) to acquire by purchase, lease or otherwise any undertaking belonging to persons, whether a local water authority or not, who are supplying or are authorised to supply water in any area within the limits of supply of the applicants ;
- (c) to contract with any person for a supply by that person of water in bulk or otherwise ;
- (d) to borrow such sums as may be required by them for the purposes of their undertaking in order to meet any expenditure of a capital nature or the cost of executing any work, or providing any plant or doing any other thing where, having regard to the nature of the work, plant or thing, the cost ought to be spread over a term of years ; so however that the sums so borrowed shall be repaid within such period not exceeding sixty years as the Secretary of State may determine ; and
- (e) to erect and maintain houses for the use of persons employed by them for the purposes of their undertaking ;

PART III.
—cont.

and the order may contain such incidental, consequential and supplementary provisions, including provisions for the amendment and repeal of any local enactment, as the Secretary of State thinks necessary or expedient :

Provided that an order made under this section shall not empower the applicants to acquire compulsorily any land or any water rights or vary compulsorily the quantity of compensation water required by any enactment to be discharged into any watercourse, or the periods during which, or the manner in which, such compensation water is required to be discharged.

(2) The provisions of Part I of the First Schedule to this Act, other than paragraph 7, shall apply to the making of applications and orders under this section.

Application of waterworks code.

Incorporation
of certain
provisions
of Fourth
Schedule
to this Act
and other
statutory
provisions.

43.—(1) For the purpose of enabling a local authority to supply water under this Part of this Act, there shall be incorporated with this Part of this Act, subject to any necessary modifications, the following provisions of the Fourth Schedule to this Act, that is to say—

section five of Part II ;

Part V (Supply of water for public purposes) ;

Part VII (Provisions for preventing waste, etc., of water and as to meters and other fittings) ;

Part VIII (Pollution of water by manufacture, etc., of gas) ;
and

sections forty, forty-one and forty-five of Part IX.

(2) For the purposes of the construction of any reservoir, filter or distributing tank or works connected therewith, sections twenty-five to thirty-seven of the Railways Clauses Consolidation (Scotland) Act, 1845 (which relate to the temporary occupation of lands near the railway during the construction thereof), shall be incorporated with this Part of this Act subject to the modifications that for references to the company, to the railway and to the centre of the railway there shall be substituted respectively references to the local authority, to the reservoir, filter, distribution tank or works and to the boundaries of the reservoir, filter, distribution tank or works, and for any reference to a justice or justices there shall be substituted a reference to the sheriff, and the prescribed limits shall be two hundred yards from such boundaries.

Incorporation
and
application
by order of
provisions
of Fourth
Schedule

44.—(1) The Secretary of State may by any order made under section sixteen, section seventeen, section nineteen or section forty-two of this Act apply to any water undertaking to which the order relates such of the provisions contained in the Fourth Schedule to this Act as appear to him to be appropriate, subject

to such modifications and adaptations as may be specified in the order.

PART III.
—cont.

(2) The Secretary of State may at any time by order apply the provisions of the Fourth Schedule to this Act or any of them to the undertaking of any local water authority supplying water under a local enactment, subject to such modifications and adaptations as may be specified in the order, and may by the order repeal any provision previously applicable to the undertaking to the extent to which it appears to him, having regard to the provisions of this Act which apply or are applied by the order to the undertaking, to be no longer required, or amend any provision previously applicable to the undertaking to any extent which appears to him necessary to bring it into conformity with the said provisions of this Act :

Provided that, during the period of five years beginning with the commencement of this Act, he shall not make such an order except on the application of the authority concerned.

(3) The provisions of Part I of the First Schedule to this Act shall apply to an order made under the last foregoing subsection on the application of the authority concerned, and the provisions of Part II of the said Schedule shall apply to an order made thereunder without any such application.

Miscellaneous.

45. Any expenditure incurred by a local authority or by a local water authority in the execution of this Act shall, so far as not met otherwise, be defrayed in like manner as expenditure incurred by them in providing a supply of water immediately before the commencement of this Act, or, where the authority did not provide a supply of water immediately before the commencement of this Act, in like manner as expenditure incurred by them in providing a supply of water would have been defrayed under the provisions of the Public Health (Scotland) Act, 1897, if they had provided a supply of water under that Act.

Expenses of local authorities and local water authorities.

60 & 61 Vict.
c. 38.

46. Any conveyance, lease, bond, mortgage, assignation, agreement, receipt or other document granted or made for any of the purposes of this Act by, to or in favour of a local authority supplying or authorised to supply water under this Act shall be exempt from all stamp duties.

Exemption from stamp duties.

47. A port local authority constituted under Part X of the Public Health (Scotland) Act, 1897, shall, if the order constituting them assigns to them the duty of providing a water supply within their district, have as respects the provision of a water supply in their district the like powers and duties as are conferred by this Act on a local authority.

Powers and duties of port local authorities.

PART III.

—cont.

Abolition of
limit of sewer
and water
rates.1 Edw. 7.
c. 24.

48. Section one hundred and thirty-seven of the Public Health (Scotland) Act, 1897 (which imposes a limitation on the total amount of the special sewer assessment and of the special water assessment) and so much of section two of the Burgh Sewerage Drainage and Water Supply (Scotland) Act, 1901, as imposes a limitation on the total amount of the sewer assessment and the water assessment shall cease to have effect.

Power of
water under-
takers to
supply
water, etc.
to local water
authorities.

49. Any person supplying water, whether under statutory powers or not, may—

- (a) contract to supply water to a local water authority ; or
- (b) sell or lease to a local water authority all or any of his waterworks and all his rights, powers and privileges attaching thereto, but subject to all liabilities attaching thereto :

19 & 20 Geo. 5.
c. 23.

Provided that a sale by a company under this subsection must be authorised, if the company is a company within the meaning of the Companies Act, 1929, by a special resolution of the members passed in the manner provided in Part IV of that Act, and if the company is not such a company, by a resolution passed by three-fourths in number and value of the members present, either personally or by proxy, at a meeting specially convened for the purpose with notice of the business to be transacted.

Temporary
discharge
of water into
watercourses.

50.—(1) Subject to the provisions of this section, a local water authority who are carrying out, or are about to carry out, the construction, alteration, repair, cleaning or examination of any reservoir, well or borehole, line of pipes or other work forming part of their undertaking, may cause the water therein to be discharged into any available watercourse, and for that purpose may lay and maintain in any street, whether within or outside their limits of supply, all necessary discharge pipes and apparatus, and such statutory provisions with respect to the breaking open of streets as are applicable to the authority shall, with any necessary modifications and adaptations, apply accordingly.

(2) Except in a case of emergency, and except in so far as may be otherwise agreed in writing between the local water authority and the board or authority concerned, the following provisions shall have effect :—

- (a) not less than seven days before commencing to discharge any such water as aforesaid through a pipe exceeding nine inches in diameter, the local water authority shall give notice of their intentions to the fishery district board of any fishery district within which any watercourse into which the water is to be discharged is situated;
- (b) the local water authority shall have due regard to any representations which may be made to them as to the

- time, mode and rate of discharge with a view to avoiding or minimising injury or inconvenience therefrom ; and
- (c) where the water is to be discharged into any river, canal or other inland navigation in respect of which a navigation authority exercise functions, the local water authority shall not discharge the water without the written approval of the navigation authority, or except at such times as that authority may approve and in a manner approved by them as not likely to injure the river, canal or navigation or the banks thereof, or interfere with traffic thereon :

Provided that—

(i) whenever the local water authority propose to discharge water on a number of occasions during a period, the giving by them of a general notice to that effect, accompanied by such particulars as it is reasonably practicable for them to give, shall constitute sufficient compliance by them with the provisions of paragraph (a) of this subsection ;

(ii) in the case of a river, paragraph (c) of this subsection shall not apply if the point of discharge into the river is more than three miles above the limits within which the navigation authority exercise jurisdiction ;

(iii) an approval required for the purposes of the said paragraph (c) shall not be withheld unreasonably, and any question whether it is withheld unreasonably or not shall be determined by the Secretary of State ; and

(iv) any approval for which application is made under the said paragraph (c) shall be deemed to have been given unless notice of disapproval is given to the local water authority within seven days after the making of the application.

- (3) If the local water authority are requested by—

- (a) the owner or occupier of any land which abuts on a watercourse at a point within three miles of any work of the authority from which water may be discharged into that watercourse under the provisions of this section ; or
- (b) the clerk to any association of mill owners any of whose constituent members is such an owner or occupier as aforesaid ; or
- (c) the owner or occupier of a salmon fishing on a watercourse at a point as aforesaid if such watercourse is within a fishery district for which no fishery district board has been constituted,

PART III.
—cont.—

to register him for the purposes of this section, the authority shall enter his name and address in a register kept by them for the purpose and, so long as his name and address appear in the register, shall, except in a case of emergency and except in so far as may be otherwise agreed with him in writing, and unless the point at which the water is to be discharged as aforesaid is situated down stream of the land in respect of which he is so registered, send to him in respect of that watercourse the like notices as they are (in the absence of any emergency or agreement to the contrary) required under the last foregoing subsection to send to a fishery district board.

(4) Except in so far as may be otherwise agreed in writing, where the local water authority discharge water during an emergency, they shall forthwith give to the boards, authorities and persons registered as aforesaid notice thereof and such further particulars relating to the discharge as may reasonably be required.

(5) The local water authority shall take all necessary steps to secure that any water discharged by them under the provisions of this section shall be as free as may be reasonably practicable from mud and silt, from solid, polluting, offensive or injurious matters, and from any matter prejudicial to fish or spawn, or to spawning beds or food of fish.

(6) The powers of this section shall not be exercised so as to damage or injuriously affect any works or other property of a railway company or a navigation authority, or so as to flood or damage any highway.

(7) In the exercise of the powers conferred by this section the local water authority shall do as little damage as may be and shall pay compensation to all persons for any damage sustained by them or liability to which they may become subject by reason of the exercise of those powers, and for the purposes of this subsection any extra expenditure which it becomes reasonably necessary for any public authority to incur for the purpose of properly discharging their statutory functions shall be deemed to be damage sustained by them.

Any question as to the amount of the compensation to be so paid shall in case of dispute be determined by arbitration.

Persons
supplying
water within
limits of
supply of
authority to
supply to
authority.

51. Any person supplying water within the limits of supply of a local water authority shall furnish such supply to that authority as they may require and as it is reasonably practicable for that person to provide, and that on such terms and conditions as may be agreed between him and the authority; and, if they fail to agree, the amount of the supply and the terms and conditions of the supply shall be determined by the Secretary of State, or if he thinks fit, referred for determination to an arbiter appointed by him.

52.—(1) A local water authority may, on the request of any person to whom they supply or propose to supply water, supply to him by way either of sale or hire, any such water fittings as are required or allowed by their byelaws, and may, on such request, install, repair or alter (but not manufacture) any such water fittings, whether supplied by them or not, and may provide any materials and do any work required in connection with such installation, repair or alteration of water fittings.

PART III.

—cont.

Power to
supply water
fittings.

The authority may make such charges as may be agreed or in default of agreement as may be reasonable for any fittings supplied, or any materials provided or work done under this subsection, and may recover such charges as civil debts.

(2) If any fittings let for hire by the authority bear either a distinguishing plate affixed thereto, or a distinguishing brand or other mark conspicuously impressed or made thereon, sufficiently indicating the authority as the actual owners of the fittings, those fittings—

- (a) shall, notwithstanding that they be fixed to some part of the premises in which they are situated or be laid in the soil thereunder, continue to be the property of, and removable by, the authority; and
- (b) shall not be subject to poinding or other diligence or to the landlord's hypothec for rent, or be liable to be taken under any process of law or in any proceedings in bankruptcy against the persons in whose possession they may be:

Provided that nothing in this subsection shall affect the valuation for rating of any lands and heritages.

(3) The authority shall so adjust the charges to be made by them under this section as to meet any expenditure by them thereunder, including interest upon any moneys borrowed for the purposes thereof and any sums carried to a sinking fund or otherwise required for repayment of moneys so borrowed, and the total sums expended and received by the authority in connection with the purposes of this section in each year, including interest and any sums carried to a sinking fund or otherwise required for repayment of moneys borrowed, shall be separately shown in the published accounts of the authority for that year.

(4) If any person wilfully or negligently injures or suffers to be injured any water fitting belonging to the authority, he shall be liable on summary conviction to a fine not exceeding five pounds and the authority may do all such work as is necessary for repairing any injury done and may recover the expenses reasonably incurred by them in so doing from the offender as a civil debt.

PART III.
—cont.Provision of
water supply
for new
buildings
and houses.*Provisions to secure that houses, etc., are supplied with water.*

53.—(1) Subject to the provisions of this section, it shall be the duty of any person erecting or causing to be erected a building the erection of which is begun after the commencement of this Act, to make adequate provision to the satisfaction of the local authority, or in the case of a burgh having a dean of guild court, to the satisfaction of the dean of guild court, for a sufficient supply of wholesome water in pipes for the domestic purposes of the persons occupying or using the building :

Provided that in the case of a building being a factory within the meaning of the Factories Act, 1937, other than a factory in which the production or the preparation of food or drink for human consumption is carried on by way of trade, where the Secretary of State, after consulting the local water authority, is satisfied that the authority would be unable to provide a sufficient supply of wholesome water in pipes for the purposes aforesaid without endangering their ability to meet existing obligations to supply water for any purpose or probable future requirements to supply water for domestic purposes or without having to incur unreasonable expense, and is satisfied that it would not be reasonably practicable to obtain a sufficient supply as aforesaid from any other source, it shall be a sufficient compliance with the requirements of this section if adequate provision is made to the satisfaction of the local authority or the dean of guild court, as the case may be, for the installation in accordance with any regulations which the Secretary of State may make of a sufficient supply of wholesome water in pipes for drinking, cooking and personal ablution and of a sufficient supply of suitable water in pipes for sanitary and other domestic purposes.

(2) Subject to the provisions of this section and without prejudice to the generality of the last foregoing subsection, no person shall after the commencement of this Act, erect or cause to be erected a house or shall use or permit to be used as a house any building the erection of which is begun after the commencement of this Act, unless there is provided within the house or building a sufficient supply of wholesome water for domestic purposes in pipes with a sink in some well lighted and ventilated place, and suitable drainage to carry off the foul water.

(3) For the purposes of the foregoing provisions of this section a building or house shall be deemed to be erected where the building or house is re-erected after an outer wall of the building or house has been broken or pulled or burned down to within ten feet of the surface of the ground adjoining the lowest storey.

(4) The Secretary of State may make regulations, modifying the provisions of this section in their application to such buildings and houses of a temporary nature as may be prescribed, and

such regulations may authorise the local authority or the dean of guild court, as the case may be, in prescribed cases to exempt houses of a temporary nature from the provisions of this section.

PART III.
—cont.

(5) If any person contravenes any of the provisions of this section, he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding fifty pounds and in the case of a house or building being occupied as a house contrary to the provisions of subsection (2) of this section he shall be liable to a further fine not exceeding five pounds for each day on which the house or building is occupied as a house after conviction; and without prejudice to proceedings for the recovery of any such fine, the local authority may institute civil proceedings for the purpose of interdicting the occupation of any building in the case of which the provisions of subsection (1) of this section are not complied with, or the occupation of a house as a house or the use of a building as a house in the case of which the provisions of subsection (2) of this section are not complied with.

54.—(1) It shall be the duty of the owner of every house within which there is not a sufficient supply of wholesome water for domestic purposes to provide such a supply of water in pipes within the house and to fit up in some well lighted and ventilated place therein a sink with suitable drainage to carry off the foul water, unless it is not reasonably practicable to do so, and in that event, he shall, so far as not already done, provide such a supply of water immediately outside the house or as near thereto as is reasonably practicable.

Provision of
supply of
water to
other houses.

It shall be the duty of every local authority to give such notices as are necessary to secure compliance with the provisions of this subsection, and every such notice shall be served on the owner and on every person known to the local authority to be interested as a heritable creditor in the house and shall state the time within which the works to which it relates are to be executed.

(2) Where a local authority are required by the last foregoing subsection to serve a notice on the owner of any house, they shall require such owner to furnish a written statement specifying the name and address of every person interested as a heritable creditor in the house; and if any person fails to give the local authority any information required by them under this subsection, or knowingly makes any misstatement with reference thereto, he shall be liable on summary conviction to a fine not exceeding five pounds.

(3) The owner or any person interested as a heritable creditor in the house may, within twenty-eight days after the service of the notice required to be served under subsection (1) of this section, appeal against the notice to the sheriff, who may make such order confirming or varying or annulling the notice as seems to him proper in the circumstances:

PART III.
—cont.

Provided that if and in so far as the appeal is based on the ground of some informality, defect or error in or in connection with the notice, the sheriff shall dismiss the appeal if he is satisfied that the informality, defect or error was not a material one.

(4) Subject to such right of appeal, if an owner on whom such a notice requiring the execution of any work is served fails to execute the work within the time thereby limited, the local authority—

(a) may themselves execute the work and for that purpose may exercise the like powers as a local water authority may exercise under this Act for the purposes of their water undertaking, and may recover from the owner as a civil debt the expenses reasonably incurred by them in executing the work; or

(b) may agree with the occupier of the house that he shall execute the works, in which case, on the works being executed and paid for by the occupier, he shall be entitled to recover from the owner the expenses reasonably incurred by him in so doing, together with interest thereon at the rate of five per centum per annum from the date of service of a demand for payment of the said expenses, or to deduct the amount of such expenses and interest from the rent of the house from time to time becoming due to the owner :

Provided that where the owners of two or more houses have failed to comply with the requirements of such notices and the local authority might execute the necessary works for the supply of water for each house, the authority may, if it appears to them desirable and that no greater expense would be occasioned thereby, execute works for the joint supply of water for those houses, and may recover the whole or a reasonable part of the expenses incurred by them from the owners of the houses in such proportions as may be determined by the authority or, in case of dispute, by arbitration.

(5) Where a local authority are satisfied that an owner on whom such a notice requiring the execution of any work is served is unable to comply with the requirements thereof by reason of his being unable on reasonable terms to acquire any necessary rights to take water from a suitable source or to lay pipes through any land not belonging to him or to do any other work, the local authority may at the expense of the owner themselves take such steps as are necessary for the execution of the work, and for that purpose may exercise the like powers as a local water authority may exercise under this Act for the purposes of their water undertaking.

(6) A local authority may, if they think fit, contribute towards the cost of complying with any requirement made by them under the foregoing provisions of this section, and where they

agree to make such a contribution the expenses shall be deemed to be the net expenses after deducting such contribution.

(7) Without prejudice to any of the foregoing provisions of this section, an owner on whom a notice given under this section has been served shall, if he fails to comply with any requirement thereof, be guilty of an offence and shall on summary conviction be liable to a fine not exceeding five pounds and to a further fine not exceeding forty shillings for each day on which the default continues after conviction therefor.

(8) Where proceedings for the recovery of expenses incurred under this section are taken against an owner on whom a notice under this section has been served, it shall not be open to him to raise in those proceedings any question which he could have raised on an appeal under this section.

(9) In this section and in the three next succeeding sections the expression "owner" has the like meaning as in the Public Health (Scotland) Act, 1897:

Provided that a landholder within the meaning of the Small Landholders (Scotland) Acts, 1886 to 1931, shall, for the purposes of the said sections, be deemed to be the owner of any house on his holding in respect of which he would, on the termination of his tenancy, be entitled to compensation under the said Acts.

55.—(1) Where a local authority have under the last foregoing section required any owner of a house to execute any works and the work has been completed, the authority may on the application of the owner and on being satisfied as to the due execution of the work and as to the amount of the expenditure thereon make an order (in this section referred to as a "charging order") declaring that the house and any land held in connection therewith are thereby charged and burdened with an annuity to repay the amount of the expenditure together with the expenses of obtaining the charging order, and recording it in the appropriate Register of Sasines.

Power of local
authority to
grant or make
charging
order for
expenses
of executing
works.

(2) Subject as hereinafter provided, the annuity charged shall be such sum (not exceeding such sum as may from time to time be prescribed) as the authority may determine in respect of every hundred pounds of the said amount, and so in proportion in respect of any fraction of that amount, and shall commence from the date of the order and be payable by equal half-yearly payments to the person named in the order by whom the expenditure was incurred, his executors or assignees until the expiration of a period of thirty years from the date on which the local authority were satisfied as to the due execution of the work.

(3) Where a local authority have incurred expenses in the execution of works under the last foregoing section then, without prejudice to any other remedy for, or any preference with respect to, the recovery thereof, it shall be competent for

ART III.
—cont.

them, on giving not less than fourteen days' notice to the owner, to make a charging order in favour of themselves in respect of such expenses (including the expenses of obtaining the charging order and recording it in the appropriate Register of Sasines) in like manner as they may make a charging order in favour of a person under the foregoing provisions of this section.

(4) A charging order shall not have effect until it is recorded in the appropriate Register of Sasines.

(5) Every annuity constituted a charge by a charging order which is recorded in the appropriate Register of Sasines shall be a charge on the house and land specified in the order, having priority over all existing and future estates, interests and incumbrances with the exception of—

(a) feu duties and teinds ;

(b) any charges on the premises by virtue of charging orders under the Housing (Scotland) Acts, 1925 to 1944, recorded before the recording of the order under this section ; and

(c) any charge created under any Act authorising advances of public money ;

and where more annuities than one are charged under this section on any house and land such annuities shall as between themselves have order and preference according to the respective dates of the recording of the charging orders in the appropriate Register of Sasines.

(6) A charging order recorded in the appropriate Register of Sasines shall be conclusive evidence that all notices, acts and proceedings by this Part of this Act required in connection with the execution of the work or with reference to or consequent on obtaining or making such an order have been duly served, done and taken, and that the charge has been duly created and is a valid charge on the house and land declared to be subject thereto.

(7) Every annuity charged by any such charging order may be recovered by the person for the time being entitled to it by the same means and in the like manner in all respects as if it were a rentcharge secured on the subjects by absolute order made under and in terms of the Improvement of Land Act, 1864.

27 & 28 Vict.
c. 114.

(8) A charging order and all sums payable thereunder may from time to time be transferred in like manner as a bond and disposition in security or rentcharge.

(9) Any owner of, or other person interested in, a house and land on which an annuity has been charged by any such charging order shall at any time be entitled to redeem the annuity on payment to the person entitled to the annuity of such sum as may be agreed upon or, in default of agreement, determined by the Secretary of State.

(10) A charging order shall be in such form as may be prescribed.

56.—(1) Where a local authority have incurred expenses, for the repayment of which the owner of premises in respect of which the expenses were incurred is liable under this Part of this Act or the corresponding provisions contained in any enactment repealed by this Act, those expenses, together with interest from the date of service of a demand for payment of those expenses, may be recovered by the authority from the person who is the owner of the premises at the date when the works are completed, or, if he has ceased to be the owner of the premises before the date when a demand for payment of the expenses is served from the person who is the owner at the date when the demand is served. PART III.
—cont.
Recovery
of expenses
from owner

(2) A local authority may by order declare any expenses so recoverable by them to be payable with interest by instalments for a period not exceeding thirty years until the whole amount is paid; and any such expenses and interest, or any part thereof may be recovered from the owner or occupier for the time being of the premises in respect of which the expenses were incurred, and if recovered from the occupier may be deducted by him from the rent of the premises:

Provided that an occupier shall not be required to pay at any one time any sum in excess of the amount which was due from him on account of rent at, or has become due from him on account of rent since, the date on which he received a demand from the local authority, together with a notice requiring him not to pay rent to his landlord without deducting the sum so demanded.

An order may be made under this subsection at any time with respect to any unpaid balance of expenses and accrued interest, so however that the period for repayment shall not in any case extend beyond thirty years from the service of the first demand for payment of the expenses.

(3) The rate of interest chargeable under subsection (1) or subsection (2) of this section shall be such as the local authority may determine:

Provided that the Secretary of State may from time to time prescribe a maximum rate of interest for the purposes of this section generally or different maximum rates for different purposes and in different cases.

57. Where a local authority claim to recover any expenses under this Part of this Act from a person as being the owner of the premises in respect of which the expenses were incurred, and that person proves that he— Limitation
of liability of
certain
owners.

(a) is receiving the rent of those premises merely as a trustee, tutor, curator, factor or agent for some other person, and

PART III.
—cont.

- (b) has not, and since the date of the service on him of the demand for payment has not had, in his hands on behalf of that other person sufficient money to discharge the whole demand of the authority,

his liability shall be limited to the total amount of the money which he has or has had in his hands as aforesaid; but a local authority who are or would be debarred by the foregoing provisions from recovering the whole of any such expenses from a trustee, tutor, curator, factor or agent may recover the whole or any unpaid balance thereof from the person on whose behalf he receives the rent.

PART IV.

CONSERVATION AND PROTECTION OF WATER RESOURCES.

Agreements as
to drainage,
etc., of land.

58.—(1) A local water authority may enter into agreements with the owners and occupiers of any land, in so far as their interest enables them to bind it, or with a local authority with respect to the execution and maintenance by any party to the agreement, of such works as the local water authority consider necessary for the purpose of draining that land, or for more effectually collecting, conveying, or preserving the purity of, water which they are for the time being authorised to take:

Provided that where the execution of any such works would result in the discharge of water, otherwise than through public sewers, into any watercourse which is within a fishery district or is subject to the jurisdiction of a navigation authority or from which any public undertakers are authorised by any enactment to take or use water, the local water authority shall, before entering into the agreement, consult with the fishery district board or the navigation authority or the undertakers concerned.

(2) An agreement under this section with an owner of land shall, if it is so expressed therein, on being recorded in the appropriate Register of Sasines, be binding upon and enforceable against any person subsequently acquiring the land or any estate or interest therein.

(3) An agreement under this section with a local authority may extend to the execution and maintenance by that authority of works of sewerage and sewage disposal.

Power to
prohibit
or restrict
temporarily
use of hose-
pipes in case
of drought.

59.—(1) If a local water authority are of opinion that a serious deficiency of water available for distribution by them exists, or is threatened, they may for such period as they think necessary prohibit or restrict as respects the whole or any part of their limits of supply the use for the purpose of watering private gardens or washing private motor cars of any water supplied by them and drawn through a hosepipe or similar apparatus.

In this subsection the expression "private motor car" means a mechanically propelled vehicle intended or adapted for use on roads other than a public service vehicle within the meaning of Part IV of the Road Traffic Act, 1930, or a goods vehicle within the meaning of Part I of the Road and Rail Traffic Act, 1933, and includes any vehicle drawn by a private motor car.

PART IV.
—cont.

20 & 21 Geo. 5.
c. 43.
23 & 24 Geo. 5.
c. 53.

(2) The authority shall, before the prohibition or restriction comes into force, give notice by publication in two or more newspapers circulating within the area affected and by such other means as the authority may think proper of the prohibition or restriction and of the date when it will come into force.

(3) Any person who, while the prohibition or restriction is in force, contravenes its provisions, shall in respect of each offence be liable on summary conviction to a fine not exceeding five pounds.

60.—(1) A local water authority may make byelaws for preventing waste, undue consumption, misuse, or contamination of water supplied by them, and such byelaws may, without prejudice to the foregoing generality, include provisions—

Byelaws for preventing waste, misuse or contamination of water.

(a) prescribing the size, nature, design, materials, strength and workmanship, and the mode of arrangement, connection, disconnection, alteration and repair of the water fittings to be used; and

(b) forbidding the use of any water fittings which are of such a nature or design or are so arranged or connected as to cause or permit, or be likely to cause or permit, waste, undue consumption, misuse, erroneous measurement or contamination of water, or reverberation in pipes.

(2) If a person contravenes the provisions of any byelaw made under this section, the authority may, whether proceedings have been taken in respect of the offence or not, cause any water fittings belonging to or used by that person which are not in accordance with the requirements of the byelaws to be altered, repaired or replaced, and may recover the expenses reasonably incurred by them in so doing from the person in default as a civil debt.

(3) Nothing in this section, or in any byelaw made thereunder, shall apply to any fittings used on premises which belong to a railway company and are held or used by them for the purposes of their railway, so long as those fittings are not of such a nature or design or so arranged or connected as to cause or permit waste, undue consumption, misuse, or contamination of water supplied by the authority or reverberation in pipes;

Provided that the exemption conferred by this subsection shall not extend to fittings used in hotels or dwelling houses or in offices not forming part of a railway station.

PART IV.
—*cont.*
Byelaws for
preventing
pollution of
water.

61.—(1) If it appears to a local water authority to be necessary for the purpose of protecting against pollution any water whether on the surface or underground, which belongs to them or which they are for the time being authorised to take, they may by byelaws—

- (a) define the area within which they deem it necessary to exercise control ; and
- (b) prohibit or regulate the doing within that area of any act specified in the byelaws.

Byelaws made under this section may contain different provisions for different parts of the area defined by the byelaws.

(2) Where an area has been defined by byelaws under this section, the authority may by notice require either the owner or the occupier of any premises within that area to execute and keep in good repair such works as they consider necessary for preventing pollution of their water, and, if he fails to comply with any such requirement, he shall be liable on summary conviction to the same penalties as if he had committed an act prohibited by the byelaws :

Provided that an owner or occupier who considers that a requirement made on him under this subsection is unreasonable may within twenty-eight days after service on him of the requirement, appeal to the sheriff, who may, if he decides that the requirement is unreasonable, modify or disallow the requirement.

(3) The authority shall pay compensation to the owners and occupiers of, and other persons interested in, any premises within the area defined by byelaws made under this section in respect of—

- (a) any curtailment or injurious affection of their legal rights by restrictions imposed by the byelaws ; and
- (b) any expenses incurred by them in complying with a requirement to construct and maintain any works the construction of which could not, apart from this section, lawfully have been required otherwise than upon payment of compensation by the local authority of the district,

and any question as to the amount of compensation to be paid shall in case of dispute be determined by arbitration.

In this subsection the expression “ legal rights ” includes the use of land in respect of which proceedings might have been taken by the local authority of the district or otherwise under any public general Act or under byelaws made thereunder, but have not been so taken, either by reason of the character or situation of the land or for some other reason.

(4) Where any person has failed to comply with a requirement made on him under subsection (2) of this section and either—

(a) he has not appealed to the sheriff against that requirement and the time for appealing has expired, or

(b) his appeal has been dismissed or the requirement has been modified on his appeal and he has failed to comply with the requirement as so modified,

the authority may, whether proceedings have been taken in respect of such failure or not, execute and keep in good repair the works specified in the requirement as originally made or, as the case may be, as modified on appeal, and may recover the expenses reasonably incurred by them in so doing from the person in default as a civil debt, except expenses incurred in respect of works the construction of which could not, apart from this section, lawfully have been required otherwise than upon payment of compensation by the local authority of the district or county.

(5) Two or more local water authorities may combine for the purpose of making and enforcing byelaws under this section, and this section and subsection (2) of the next following section of this Act shall in any such case have effect as if the references to a local water authority were references to those two or more local water authorities acting jointly.

(6) Nothing in this section shall be construed as empowering the authorities to make any byelaw restricting the rights of a navigation authority under any enactment.

62.—(1) The Secretary of State shall be the confirming authority as respects byelaws made under either of the last two foregoing sections, and the provisions of Part IV of the First Schedule to this Act shall apply to the making and confirming of such byelaws. General provisions as to byelaws.

(2) It shall be the duty of a local water authority by whom such byelaws are made to enforce those byelaws, so however that nothing in this subsection shall be construed as authorising the authority to institute proceedings for any offence against those byelaws.

(3) Any such byelaws may contain provisions for imposing on any person contravening the byelaws a fine, recoverable on summary conviction, not exceeding the sum of twenty pounds in respect of each offence, and in the case of a continuing offence a further fine not exceeding five pounds for each day during which the offence continues after conviction therefor.

(4) Subject as hereinafter provided—

(a) any byelaw made under either of the last two foregoing sections shall cease to have effect on the expiration of the period of ten years beginning with the date on which it was made; and

PART IV.
—cont.

- (b) any byelaw or regulation made by a local water authority under any other enactment which confers power to make byelaws or regulations for purposes similar to the purposes for which byelaws may be made under either of the last two foregoing sections shall cease to have effect on the expiration of the period of five years beginning with the commencement of this Act :

Provided that the Secretary of State may by order extend the period during which any byelaw or regulation to which this subsection applies is to remain in force.

Power of Secretary of State to require the making of byelaws in case of default and to revoke unsatisfactory byelaws.

63.—(1) The Secretary of State may by notice require a local water authority to make byelaws under section sixty or section sixty-one of this Act in relation to such matters as he may specify, and, in the case of byelaws made under section sixty-one, he shall specify the area for which the byelaws are to be made, and if the authority do not within three months after such requirement make in relation to the matters specified byelaws satisfactory to him, the Secretary of State may himself make byelaws with respect to those matters.

(2) If, after they have been in operation for a period of not less than three years, the Secretary of State considers unsatisfactory any byelaws made by an authority under the said section sixty or the said section sixty-one or any byelaws or regulations made by an authority under any other enactment conferring power to make byelaws or regulations for purposes similar to the purposes for which byelaws may be made under either of the said sections, he may by notice require the authority to revoke those byelaws or regulations and to make such new byelaws under the said section sixty or the said section sixty-one as he considers necessary ; and if the authority do not within three months after such requirement comply therewith, the Secretary of State may himself revoke the byelaws or regulations and make such new byelaws under the said section sixty or the said section sixty-one as he considers necessary.

(3) Any byelaws made by the Secretary of State under this section shall have effect as if they had been made by the authority concerned and confirmed by the Secretary of State.

Penalty for polluting water used for human consumption.

64. If any person is guilty of any act or neglect whereby any spring, well or adit, the water from which is used or likely to be used for human consumption or domestic purposes or for manufacturing food or drink for human consumption is polluted or likely to be polluted, he shall be guilty of an offence against this Act :

Provided that nothing in this section shall be construed as prohibiting or restricting—

- (a) any method of cultivation or use of land which is in accordance with the principles of good husbandry ; or

- (b) the reasonable use of oil or tar on any highway, so long as the highway authority take all reasonable steps for preventing the oil or tar, or any liquid or matter resulting from the use thereof, from polluting any such spring, well or adit.

65.—(1) For the purpose of any provision of this Act conferring power on a local water authority to acquire land for the purposes of their undertaking, there shall be deemed to be included among those purposes the purpose of protecting against pollution any water, whether on the surface or underground, which belongs to the authority or which they are for the time being authorised to take.

Acquisition of land and execution of works for protection of water.

(2) A local water authority may on any land belonging to them, or over or in which they have acquired the necessary servitudes or rights, construct or maintain drains, sewers, watercourses, catchpits and other works for intercepting, treating or disposing of any foul water arising or flowing upon that land, or for otherwise preventing water which belongs to the authority or which they are for the time being authorised to take from being polluted :

Provided that

- (a) before constructing any such works the authority shall, if the proposed works will affect any watercourse in a fishery district or which is subject to the jurisdiction of a navigation authority, consult with the fishery district board or the navigation authority concerned ;
- (b) nothing in this subsection shall authorise the authority to intercept or take any water which a navigation authority or any public undertakers are authorised by any enactment to take or use for the purposes of their undertaking without the consent of that navigation authority or those public undertakers.

(3) A local water authority proposing to construct any drain, sewer or water-course for the purposes mentioned in the last foregoing subsection may, with the consent of the highway authority concerned, which may be given subject to such conditions as the highway authority think fit, carry the drain, sewer or water-course under, across or along any street whether within or outside their limits of supply, and such statutory provisions with respect to the breaking open of streets as are applicable to the local water authority shall, with any necessary modifications and adaptations, apply accordingly.

(4) A consent required for the purposes of either of the two last foregoing subsections shall not be unreasonably withheld nor shall any unreasonable condition be attached to such a consent, and any question whether or not such a consent is unreasonably withheld or whether any condition which it is sought to impose is unreasonable shall in case of dispute be determined by arbitration.

PART V.

GENERAL.

Compensation
to officers
of local
authorities, etc.

16 & 17 Geo. 5.
c. 47.

Power to
execute work
on behalf of
owner or
occupier.

Power to
require
occupier to
permit works
to be executed
by owner.

False
information.

66. If in consequence of a combination of authorities under this Act or any order made under this Act or anything done in pursuance thereof, any person who, immediately before the date on which the combination or order came into operation was an officer or servant of a local authority or joint water board affected by the combination or order, is transferred to the employment of the new joint authority or any other authority in the combination or his appointment is determined, or his emoluments are diminished, and suffers any direct pecuniary loss by reason of such transfer, determination or diminution, he shall, unless provision for his compensation for that loss is made by or under any other enactment for the time being in force, be entitled to receive compensation from the local authority or joint water board affected or such authority or board as may be specified in the order, and the provisions of section twenty-seven of and the Second Schedule to the Rating (Scotland) Act, 1926, and of paragraph (i) of subsection (1) of section seven of the Local Government (Scotland) Act, 1929, shall apply in relation to claims for compensation under this section as they apply in relation to claims for compensation under those Acts, subject to such modifications as the Secretary of State may prescribe for the purpose of adapting those provisions to cases arising under this section.

67. A local water authority may by agreement with the owner or occupier of any premises execute at his expense any work in connection with the laying, maintenance, repair, alteration, renewal or removal of any water pipe, cock or meter which he is required or entitled to execute by or under this Act or any local enactment incorporating any provisions of the Fourth Schedule to this Act, and for that purpose shall have all such rights as he has and may provide necessary materials.

68. If on a complaint by the owner of any premises it appears to the sheriff that the occupier of those premises prevents the owner from executing any work which he is required to execute by or under this Act or any local enactment incorporating any provisions contained in the Fourth Schedule to this Act or by or under any byelaws made under this Act or under any such enactment, the sheriff may authorise the owner to enter for the purpose of executing the work.

69. Any person who, in keeping any record or journal or in furnishing any return, abstract or information which he is required by or under this Act to keep or furnish, knowingly or recklessly makes any statement which is false in a material particular shall be liable in respect of each offence—

(i) on summary conviction, to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding

three months or to both such fine and such imprisonment ;

PART V.
—cont.

- (ii) on conviction on indictment, to a fine not exceeding two hundred pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

70.—(1) Any person guilty of an offence against this Act shall, except where the provision by or under which the offence is created provides for the penalty to be imposed, be liable in respect of each offence—

Trial of, and
penalties for,
offences.

- (a) on summary conviction, to a fine not exceeding fifty pounds and in the case of a continuing offence to a further fine not exceeding five pounds for every day during which the offence is continued after conviction ;
- (b) on conviction on indictment, to imprisonment for a period not exceeding three months or to a fine not exceeding two hundred pounds, and in the case of a continuing offence to a fine not exceeding twenty pounds for every day during which the offence is continued after conviction.

(2) Any offence under this Act or under any byelaw made under this Act (other than an offence in respect of which, if it is continued, a further penalty may be imposed) for which the maximum penalty that may be imposed does not exceed ten pounds may be prosecuted in any court of summary jurisdiction within the meaning of the Summary Jurisdiction (Scotland) Act, 1908, 8 Edw. 7 c. 65. having jurisdiction in the place where the offence was committed.

71. Where provision is made by or under this Act or any local enactment incorporating any provisions of the Fourth Schedule to this Act for the imposition of a daily penalty in respect of a continuing offence, the court by which a person is convicted may fix a reasonable period from the date of the conviction for compliance by that person with any directions given by the court, and, where the court has fixed such a period, the daily penalty shall not be recoverable in respect of any day before the expiration thereof.

Continuing
offences and
penalties.

72.—(1) Subject to the provisions of this section, an authorised officer of a local water authority shall, on producing if so required some duly authenticated document showing his authority, have a right to enter any premises at all reasonable hours—

Entry of
premises.

- (a) for the purpose of inspecting and examining meters used by the authority for measuring the water supplied by them and of ascertaining therefrom the quantity of water consumed ;

PART V.
—cont.

- (b) for the purpose of ascertaining whether there is or has been on or in connection with the premises any contravention of the provisions of this Act or of any byelaws made thereunder ;
- (c) for the purpose of ascertaining whether or not circumstances exist which would authorise the authority to take any action or execute any work under this Act or any such byelaws ;
- (d) for the purpose of taking any action or executing any work authorised or required by this Act or any such byelaws to be taken or executed by the authority.

(2) Admission to any premises, not being a factory within the meaning of the Factories Act, 1937, or a place in which persons are employed otherwise than in domestic service, shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier.

(3) If it is shown to the satisfaction of the sheriff, or a magistrate or justice of the peace having jurisdiction in the place, on a sworn information in writing—

- (a) that admission to any premises which any person is entitled to enter by virtue of such a right of entry has been refused to that person, or that refusal is apprehended, or that the premises are unoccupied, or the occupier is temporarily absent, or that the case is one of urgency, or that the application for admission would defeat the object of the entry ; and
- (b) that there is reasonable ground for entry into the premises for any purpose for which the right of entry is exercisable ;

the sheriff, magistrate or justice may by warrant under his hand authorise that person to enter the premises if need be by force :

Provided that such a warrant shall not be issued unless the sheriff, magistrate or justice is satisfied either that notice of intention to apply for a warrant has been given to the occupier, or that the premises are unoccupied, or that the occupier is temporarily absent, or that the case is one of urgency, or that the giving of such notice would defeat the object of the entry.

(4) Any person entitled to enter any premises by virtue of such a right of entry, or of a warrant issued under this section, may take with him such other persons as may be necessary, and on leaving any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectually secured against trespassers as he found them.

(5) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

(6) If any person who, in compliance with any of the foregoing provisions of this Act or with a warrant issued thereunder, is admitted into any premises makes use of or discloses to any person any information obtained by him there with regard to any manufacturing process or trade secret, he shall, unless such use or disclosure was made in the performance of his duty, be liable in respect of each offence—

(a) on summary conviction, to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment ;

(b) on conviction on indictment, to a fine not exceeding two hundred pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

(7) Any person who wilfully obstructs any person upon whom a right of entry has been conferred by any of the foregoing provisions of this Act or by a warrant issued under this section shall in respect of each offence be liable on summary conviction to a fine not exceeding five pounds.

(8) The provisions of this section shall, unless otherwise provided in any order made under section forty-four of this Act, be incorporated in any local enactment incorporating any provisions of the Fourth Schedule to this Act.

(9) This section except subsection (6) shall not apply to any right conferred by section four of this Act.

73.—(1) The Secretary of State may cause such local inquiries Local inquiries. to be held as he may consider necessary or proper in connection with the discharge by him of any of his functions under this Act or under any other enactment with respect to water supplies or water undertakings, and the provisions of this section shall apply to any such local inquiry and to any other local inquiry which he is required by this Act or any other such enactment to cause to be held.

(2) The Secretary of State shall appoint a person to hold the inquiry and to report thereon to him.

(3) The person appointed to hold the inquiry shall notify any person who has lodged and has not withdrawn objections in relation to any matter in question at the inquiry, and any other persons or bodies appearing to him to be interested.

(4) The person appointed to hold the inquiry may by notice require any person—

(a) to attend at the time and place set forth in the notice to give evidence or to produce any books or documents

PART V.
—cont.

in his custody or under his control which relate to any matter in question at the inquiry ; or

- (b) to furnish within such reasonable period as is specified in the notice such information relating to any matter in question at the inquiry as the person appointed to hold the inquiry may think fit and as the person so required is able to furnish :

Provided that—

(i) no person shall be required in obedience to such a notice to attend at any place which is more than ten miles from the place where he resides unless the necessary expenses are paid or tendered to him ; and

(ii) nothing in this paragraph shall empower the person appointed to hold the inquiry to require any person to produce any book or document or to answer any question which he would be entitled, on the ground of privilege or confidentiality, to refuse to produce or to answer if the inquiry were a proceeding in a court of law.

(5) The person appointed to hold the inquiry may administer oaths and examine witnesses on oath and may accept, in lieu of evidence on oath by any person, a statement in writing by that person.

(6) Any person who refuses or wilfully neglects to attend in obedience to a notice under subsection (4) of this section, or to give evidence, or who wilfully alters, suppresses, conceals, destroys or refuses to produce any book or document which he may be required to produce by any such notice or who refuses or neglects to furnish any information which he is required to furnish under paragraph (b) of subsection (4) of this section shall be liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a period not exceeding three months.

(7) The expenses incurred by the Secretary of State in relation to any inquiry held in pursuance of any provision of the First Schedule or the Second Schedule to this Act (including such reasonable sum not exceeding five guineas a day for the services of any officer engaged in the inquiry) shall be paid by such local authority or local water authority as the Secretary of State may direct, and he may certify the amount of the expenses so incurred. Any amount so certified and directed to be paid by any authority shall be recoverable from that authority as a debt to the Crown.

(8) The Secretary of State may make orders as to the expenses incurred by the parties appearing at any inquiry to which the provisions of this section apply and as to the parties by whom such expenses shall be paid.

(9) Any order by the Secretary of State under the last foregoing subsection requiring any party to pay expenses may be enforced in like manner as a recorded decree arbitral.

PART V.
—cont.

74.—(1) Any inquiry in relation to an order under this Act which in certain events becomes subject to special parliamentary procedure shall, if the Secretary of State so directs, be held by commissioners under the Private Legislation Procedure (Scotland) Act, 1936; and any direction so given shall be deemed to have been given under section two, as read with section ten, of the Statutory Orders (Special Procedure) Act, 1945.

Provisions as to orders subject to special parliamentary procedure.
9 & 10 Geo. 6. c. 18.

(2) Nothing in subsections (2) to (9) of section seventy-three of this Act shall apply to any inquiry under this section by commissioners under the Private Legislation Procedure (Scotland) Act, 1936.

26 Geo. 5 & 1 Edw. 8. c. 52.

(3) The provisions of the Statutory Orders (Special Procedure) Act, 1945, with regard to the publication of notices in the Edinburgh Gazette and in a newspaper shall, notwithstanding anything in that Act contained, not apply to any order under this Act which is subject to special parliamentary procedure.

75. Any power conferred on the Secretary of State by this Act to make orders shall be deemed to include a power, exercisable in the like manner and subject to the like conditions, to vary or revoke any such order.

Power to revoke and vary orders.

76.—(1) The Secretary of State may make regulations prescribing anything required to be prescribed for the purpose of any provision of this Act.

Regulations.

(2) All regulations made under this Act shall be laid before Parliament as soon as may be after they are made, and if either House of Parliament, within the period of forty days beginning with the day on which any such regulations are laid before it, resolves that the regulations be annulled, the regulations shall cease to have effect, but without prejudice to anything previously done thereunder or to the making of any new regulations.

In reckoning any such period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

77. Any expenses incurred by the Secretary of State in the exercise of his functions under this Act shall be defrayed out of moneys provided by Parliament.

Expenses of Secretary of State.

78. All notices, consents, approvals, demands and other documents authorised or required by or under this Act or any

Notices, etc., to be in writing.

PART V.
—cont.

local enactment incorporating any provisions of the Fourth Schedule to this Act to be given, made or issued by the Secretary of State or any local authority or local water authority and all notices and applications authorised or required by or under this Act or any such local enactment to be given or made to the Secretary of State or to, or to any officer of, any local authority or local water authority, shall be in writing.

Authentica-
tion of
documents.

79.—(1) Any notice, consent, approval, demand or other document which any local authority or local water authority are authorised or required by or under this Act or any local enactment incorporating any provisions of the Fourth Schedule to this Act to give, make or issue, may be signed—

(a) on behalf of a local authority—

(i) by the clerk of the authority ;

(ii) by the water engineer or the chief financial officer of the authority as respects documents relating to matters within their respective provinces ;

(iii) by any officer of the authority authorised by them in writing to sign documents of the particular kind, or, as the case may be, the particular document ;

(b) on behalf of a local water authority—

(i) by the clerk or secretary of the authority ;

(ii) by any other officer of the authority authorised by them in writing to sign documents of the particular kind or, as the case may be, the particular document.

(2) Any document purporting to bear the signature of any person expressed to hold an office by virtue of which he is under this section empowered to sign a document or expressed to be duly authorised by the authority to sign such a document or the particular document shall, for the purposes of this Act or any local enactment incorporating any provisions of the Fourth Schedule to this Act and of any byelaws made thereunder, be deemed, until the contrary is proved, to be duly given, made or issued by authority of the authority concerned.

In this subsection the expression “signature” includes a facsimile of the signature by whatever process reproduced.

Service of
notices, etc.

80. Any notice, consent, approval, demand or other document which is required or authorised by or under this Act or any local enactment incorporating any provisions of the Fourth Schedule to this Act or byelaws made thereunder to be given to or served on any person may, in any case where no other provision as respects service is made by that local enactment or those byelaws, be given or served either—

(a) by delivering it to that person ; or

- (b) in the case of an officer of any local authority, local water authority, navigation authority or fishery district board by leaving it, or sending it in a prepaid letter addressed to him, at his office ; or
- (c) in the case of any other person, by leaving it, or sending it in a prepaid letter addressed to him, at his usual or last known residence ; or
- (d) in the case of an incorporated company or body, by delivering it to their clerk or secretary at their registered or principal office, or by sending it in a prepaid letter addressed to him at that office ; or
- (e) in the case of a document to be given to or served on a person as being the owner of any premises by virtue of the fact that he receives the rent thereof as agent for another, or would so receive it if the premises were let, by leaving it, or sending it in a prepaid letter addressed to him, at his place of business ; or
- (f) in the case of a document to be given to, or served on, the owner or occupier of any premises, if it is not practicable after reasonable inquiry to ascertain the name and address of the person to or on whom it should be given or served, or if the premises are unoccupied, by addressing it to the person concerned by the description of " owner " or " occupier " of the premises (naming them) to which it relates, and delivering it to some person on the premises, or if there is no person on the premises to whom it can be delivered, by affixing it or a copy of it to some conspicuous part of the premises.

81. In any proceedings under this Act or any local enactment incorporating any provisions of the Fourth Schedule to this Act, a document purporting to be certified by the clerk of a local authority or the clerk or secretary of a local water authority as a copy of a resolution or order passed or made by them on a specified date, or as a copy of the appointment of, or of any authority given to, an officer of the local authority or the local water authority on a specified date, shall be evidence that that resolution, order, appointment or authority was duly passed, made or given by the authority concerned on the said date. Proof of resolutions, etc.

82.—(1) It shall be competent to appeal to the sheriff against the decision of a sheriff substitute on any application to him under this Act within twenty-one days after the date of that decision, but subject thereto the decision of the sheriff or sheriff substitute shall be final. Appeal to sheriff.

(2) The provisions of this section shall also apply in the case of applications to the sheriff under any local enactment incorporating any provisions of the Fourth Schedule to this Act.

PART V.

—cont.

Mode of
reference to
arbitration.

83. In arbitrations under this Act or under any local enactment incorporating any provisions contained in the Fourth Schedule to this Act, the reference shall, except where otherwise expressly provided, be to a single arbiter to be appointed by agreement between the parties or in default of agreement by the Secretary of State.

Interpretation. 84.—(1) In this Act the following expressions shall, subject to any express provision or anything in the context to the contrary, have the meanings hereby respectively assigned to them, that is to say—

“bridge authority” means the authority who are the highway authority in respect of the highway carried by the bridge ;

“communication pipe” means—

(a) where the premises supplied with water abut on the part of the street in which the main is laid and the service pipe enters those premises otherwise than through the outer wall of a building abutting on the street and has a stopcock placed in those premises and as near to the boundary of that street as is reasonably practicable, so much of the service pipe as lies between the main and that stopcock

(b) in any other case, so much of the service pipe as lies between the main and the boundary of the street in which the main is laid ;

and includes the ferrule at the junction of the service pipe with the main, and also—

(i) where the communication pipe ends at a stopcock, that stopcock ; and

(ii) any stopcock fitted on the communication pipe between the end thereof and the main ;

“contravention” includes failure to comply, and “contravene” shall be construed accordingly ;

“county” means a county, excluding the burghs therein ;

“district” has the meaning assigned to it in section five of this Act ;

“enactment” means an enactment in an Act of Parliament, whether public general, local or private, or a provision in a statutory order ;

“fishery district” means a district for the purposes of the Salmon Fisheries (Scotland) Act, 1862 ; and “fishery district board” means the district board for a fishery district ;

“functions” includes powers and duties ;

“highway” means a highway, road, street or bridge for the maintenance and management of which a local or public authority is responsible ; and “highway authority” means the local or public authority responsible for the maintenance and management of a highway ;

“house” means a dwelling-house, whether a private dwelling-house or not, and includes any part of a building if that part is occupied as a separate dwelling-house ;

“joint water board” means a body of persons designated as a board or as trustees or by any other name, authorised by an enactment to construct, work or carry on any water undertaking, and consisting exclusively of persons appointed by local authorities, and includes a joint committee or joint water board constituted for the purposes of a combination of local authorities under this Act ;

“land” includes land covered with water and any interest in land and any right or servitude in, to or over land and shall be interpreted accordingly for the purposes of any provisions of any Act incorporated with this Act ;

“limits of supply” has the meaning assigned to it in section five of this Act ;

“local authority” has the meaning assigned to it in section five of this Act ;

“local enactment” means an enactment in any local Act of Parliament or a provision in a statutory order ;

“local water authority” has the meaning assigned to it in section five of this Act ;

“main” means a pipe laid for the purpose of giving a general supply of water as distinct from a supply to individual consumers, and includes any apparatus used in connection with such a pipe ;

“navigation authority” means any persons or body of persons, whether incorporated or not, having powers under an enactment to work, maintain, conserve, improve or control any canal or other inland navigation, navigable river, estuary, harbour or dock ;

“occupier” means the tenant or sub-tenant or any person in the actual occupation of premises, but does not include a lodger or person in the occupation as tenant of a furnished house let for a period less than a year, but includes the person by whom such a furnished house is let ;

“outer wall”, in relation to a building abutting on a street, does not include the outer wall of a cellar, or other structure, belonging to that building but situated beneath the street ;

PART V.
—cont.

- "owner", save in sections fifty-four to fifty-seven of this Act, includes in relation to any land or other premises any person who under the Lands Clauses Acts would be enabled to sell and convey the land or other premises to the promoters of an undertaking ;
- "premises" includes land and also tents, vans, sheds and similar structures ;
- "prescribed" means prescribed by regulations made by the Secretary of State under this Act ;
- "reasonably practicable" means reasonably practicable in all the circumstances, including in any case where works are involved the expense involved in executing the works ;
- "service pipe" means so much of any pipe for supplying water from a main to any premises as is subject to water pressure from that main, or would be so subject but for the closing of some tap ;
- "statutory order" means an order or scheme made under an Act of Parliament, including an order or scheme confirmed by Parliament ;
- "stream" includes a river, burn, spring or other running water ;
- "street" includes any highway and any road, lane, footway, square, court, alley or passage, whether a thoroughfare or not ;
- "a supply of water for domestic purposes" has the meaning assigned to it in section nine of this Act, and any reference to domestic purposes in relation to the supply of water shall be construed accordingly ;
- "supply of water in bulk" means a supply of water for distribution by the local water authority taking the supply ;
- "supply pipe" means so much of any service pipe as is not a communication pipe ;
- "watercourse" includes all rivers, streams, ditches, drains, cuts, culverts, dykes, sluices and passages through which water flows ;
- "water fittings" includes pipes (other than mains), taps, cocks, valves, ferrules, meters, cisterns, baths, sinks, water-closets, soil-pans and other similar apparatus used in connection with the supply and use of water ;
- "waterworks" includes streams, springs, wells, pumps, reservoirs, cisterns, tanks, aqueducts, cuts, sluices, mains, pipes, culverts, engines and all machinery, lands, buildings and things for supplying, or used for supplying, water or used for protecting sources of water supply.

(2) Any reference in this Act to persons having the control or management of a street or bridge shall be construed as a reference, in the case of a street or bridge maintainable at the public expense, to the authority who are the highway authority or, as the case may be, the bridge authority in respect thereof, and, in the case of any other street or bridge, to the authority or person responsible for the maintenance thereof, or, if no authority or person is responsible therefor, to the owners of the soil of the street or, as the case may be, of the structure of the bridge.

(3) In the construction of any enactment incorporated with this Act, the expressions "the promoters of the undertaking" or "the company" and "the special Act" shall be construed as meaning respectively the local water authority and this Act.

(4) References in this Act to any enactment shall be construed as including references to that enactment as amended by any subsequent enactment, including this Act.

85. The expression "Act of Parliament" in section seven of the Telegraph Act, 1878 (which makes provision as to work done in pursuance of Acts of Parliament involving any telegraphic lines) shall be construed as including any order made under this Act authorising the execution of works.

Provision
as to work
involving
alteration of
telegraphic
lines.

41 & 42 Vict.
c. 76.

86. Except with the consent of the persons interested, no order made under section forty-four of this Act shall abrogate or affect—

Saving for
protective
Clauses in
other Acts.

(a) any provision contained in a local enactment for the protection or benefit of any specified person or class of persons or body of persons whether incorporated or not other than a provision with respect to the discharge of compensation water into any watercourse;

(b) any provision contained in a local enactment for conferring on or preserving to the public rights of enjoyment of air, exercise and recreation on land or rights of access to land for those purposes or for conferring any right of way.

87. The enactments mentioned in the Fifth Schedule to this Act are hereby repealed to the extent mentioned in the third column thereof :

Repeals.

Provided that this repeal shall not affect any byelaw or regulation in force at the commencement of this Act and made for purposes similar to the purposes for which byelaws can be made under this Act.

PART V.
—*cont.*
Repeal and
amendment
of local
enactments.

88.—(1) The Secretary of State may, on the application of a local water authority, by order repeal or amend any local enactment relating to the supply of water by that authority or any provision in any local enactment, being a provision relating to the supply of water to the authority making application.

(2) Where it appears to the Secretary of State to be expedient for the purpose of securing a better supply of water, he may, on the application of a local water authority, by order repeal or amend any provision in a local enactment, being a provision relating to the supply of water by any other local water authority to premises in any area within the limits of supply of the authority making application.

(3) Any order made under this section may contain such incidental, consequential and supplementary provisions as the Secretary of State thinks necessary or expedient for the purposes of the order and, in particular, but without prejudice to the generality of the foregoing provision, may provide for the transfer of property and liabilities.

(4) The Secretary of State shall not make an order under this section with respect to any matter which in his opinion could be more properly dealt with under any other provisions of this Act.

(5) The provisions of Part I of the First Schedule to this Act shall apply to orders made under this section.

Short title,
extent and
commence-
ment.

89.—(1) This Act may be cited as the Water (Scotland) Act, 1946, and shall extend to Scotland only.

(2) This Act shall come into operation on the sixteenth day of May, nineteen hundred and forty-six.

SCHEDULES.

FIRST SCHEDULE.

Sections 14, 15,
16, 17, 19, 21,
42, 44, 62, 88.

PROCEDURE FOR MAKING ORDERS AND MAKING AND CONFIRMING BYELAWS.

PART I.

Orders made by the Secretary of State under sections 14 (4), 16 (1), 17, 21 (2), 42, and 88, and (if made on application of local water authority) section 44 (2).

1. Applicants for any order to which this Part of this Schedule applies shall submit to the Secretary of State a draft of the order which they desire him to make and shall publish once at least in each of two successive weeks in one or more local newspapers circulating in the area affected by the order a notice—

- (a) stating the general effect of the order ;
- (b) specifying a place in or near the said area where a copy of the draft order and of any relevant map or plan may be inspected by any person free of charge at all reasonable hours during a period of twenty-eight days from the date of the first publication of the notice ;
- (c) stating that within the said period any person may by notice to the Secretary of State object to the application.

2. Not later than the date on which the said notice is first published, the applicants shall serve a copy thereof—

- (i) on the local authority of every district comprised wholly or partly in the area affected by the order along with a copy of the draft order ;
- (ii) where it is proposed that the order shall authorise the execution of works or the acquisition of rights to take water, on the fishery district board of any fishery district within which works are to be executed or from which water is to be taken under the rights acquired, on any navigation authority exercising functions in relation to any watercourse which is affected by the works proposed to be executed or from which water is to be taken under the rights acquired and on any public undertakers known by the applicants to be authorised by any enactment to take or use water from any such watercourse.

3. The applicants shall also publish in the Edinburgh Gazette a notice stating that they are about to apply for an order under the

1ST SCH.
—*cont.*

appropriate section, naming the local authority districts comprised wholly or partly in the area affected by the order, specifying a place where a copy of the draft order and of any relevant map or plan may be inspected, and giving the name and date of issue of a local newspaper in which the notice explaining the effect of the order applied for will be found.

4. The applicants shall, at the request of any person interested, furnish to him a copy of the draft order upon payment of such charge not exceeding two shillings as they think reasonable.

5. The Secretary of State may make an order in the terms of the draft submitted to him or in those terms as modified in such manner as he thinks fit, but, where he proposes to make any modification and considers that persons other than the applicants may be adversely affected thereby, he shall require the applicants to give and publish additional notices in such manner as he thinks best adapted for informing all persons so affected of the modification proposed.

6. If before the expiration of the twenty-eight days referred to in paragraph 1 of this Part of this Schedule or of twenty-five days from the publication of the said notice in the *Edinburgh Gazette*, or before the expiration of any period specified in notices given under the last foregoing paragraph, an objection is received by the Secretary of State from any authority or board or undertakers on whom a notice is required to be served under paragraph 2 of this Part of this Schedule, or from any other person appearing to him to be affected by the application, or, as the case may be, by the proposed modification, and the objection is not withdrawn, the Secretary of State, before making any order on the application, shall cause a local inquiry to be held.

7. On the making of an order to which the foregoing provisions of this Part of this Schedule apply the Secretary of State shall give notice of the making of the order and the effect thereof to any person who has objected thereto under the foregoing provisions of this Part of this Schedule and has not withdrawn that objection, and in that case the order shall not have effect until the expiration of twenty-eight days from the date of the said notice, and if within that period any such person gives notice to the Secretary of State that he objects to the order and the objection is not withdrawn the order shall be subject to special parliamentary procedure.

8. The expenses incurred by the Secretary of State in connection with the making, notification and confirmation of an order under this Part of this Schedule shall be paid by the applicants and the Secretary of State may, in a case where there are two or more applicants, apportion such expenses between them.

9. In this Part of this Schedule the expression "area affected by the order" means in relation to any order the limits of supply or proposed limits of supply of the local water authority to whom the order relates, and also includes, if the order authorises the execution of works, the site of those works.

PART II.

1ST SCH
—cont.

Orders made by the Secretary of State under sections 14 (7), 15 (1), 16 (2), 19 (2), and (if no application by the local water authority) section 44 (2).

10. Before making an order to which this Part of this Schedule applies, the Secretary of State shall publish once at least in each of two successive weeks in one or more local newspapers circulating in the area affected by the order, a notice—

- (a) stating the general effect of the order ;
- (b) specifying a place in or near the said area where a copy of the draft order and of any relevant map or plan may be inspected by any person free of charge at all reasonable hours during a period of twenty-eight days from the date of the first publication of the notice ; and
- (c) stating that within the said period any person may by notice to the Secretary of State object to the making of the order.

11. Not later than the date on which the said notice is first published the Secretary of State shall serve a copy thereof—

- (i) on the local authority of every district comprised wholly or partly in the area affected by the order along with a copy of the draft order ;
- (ii) where it is proposed that the order shall authorise the execution of works, on the fishery district board of any fishery district within which works are to be executed, on any navigation authority exercising functions in relation to any watercourse which is affected by the works proposed to be executed and on any public undertakers known by the Secretary of State to be authorised by any enactment to take or use water from any such watercourse ;
- (iii) where it is proposed that the order shall provide for the furnishing of a supply of water in bulk, on the fishery district board of any fishery district from which water is taken by the persons who are to give the bulk supply.

12. The Secretary of State shall also publish in the Edinburgh Gazette a notice stating that he is about to make the order, naming the districts comprised wholly or partly in the area affected by the order, specifying a place where a copy of the draft order and of any relevant map or plan may be inspected, and giving the name and date of issue of a local newspaper in which the notice explaining the effect of the order will be found.

13. The Secretary of State shall, at the request of any person interested, furnish him with a copy of the draft order upon payment of such charge not exceeding two shillings as the Secretary of State thinks reasonable.

14. The Secretary of State may make the order either in the terms of the draft or in those terms as modified in such manner as he thinks fit, but, where he proposes to make any modification and considers that persons other than the authority to whom the order relates may be adversely affected thereby, he shall give and publish additional notices in such manner as he thinks best adapted for informing all persons likely to be affected by the modification proposed.

1ST SCH.
—cont.

15. If before the expiration of the twenty-eight days referred to in paragraph 10 of this Part of this Schedule, or of twenty-five days from the publication of the said notice in the Edinburgh Gazette, or before the expiration of any period specified in notices given under the last foregoing paragraph, an objection is received by the Secretary of State from any authority or board or undertakers on whom a notice is required to be served under paragraph 11 of this Part of this Schedule or from any person appearing to him to be affected by the order or, as the case may be, by the proposed modification and the objection is not withdrawn, the Secretary of State before making the order shall cause a local inquiry to be held.

16. On the making of an order to which this Part of this Schedule applies, the Secretary of State shall give notice of the making of the order and the effect thereof to any person who has objected thereto under the foregoing provisions of this Part of this Schedule and has not withdrawn that objection, and in that case the order shall not have effect until the expiration of twenty-eight days from the date of the said notice, and if within that period any such person gives notice to the Secretary of State that he objects to the order and the objection is not withdrawn, the order shall be subject to special parliamentary procedure.

17. The expenses incurred by the Secretary of State in connection with the making, notification and confirmation of an order under this Part of this Schedule shall be paid by the authority to whom the order relates, and the Secretary of State may, in a case where there are two or more such authorities, apportion such expenses between them.

18. In this Part of this Schedule the expression "area affected by the order" means, in relation to any order, the limits of supply or proposed limits of supply of the authority to whom the order relates, and also includes, if the order authorises the execution of works, the site of those works.

PART III.

Agreements made by local water authorities under section 21.

19. A local water authority who propose to enter into an agreement to which this Part of this Schedule applies shall publish once at least in each of two successive weeks in one or more local newspapers circulating within their limits of supply a notice explaining the effect of the proposals and stating that objections thereto may be made to the Secretary of State within twenty-eight days after the first publication of the notice, and shall send a copy of the notice to the local authority of any district, the fishery district board of any fishery district, and any navigation authority exercising jurisdiction in relation to any watercourse, from which water is proposed to be taken under the rights to be acquired, and to any public undertakers known by the local water authority to be authorised by any enactment to take or use water from any such watercourse.

20. The authority shall also publish in the Edinburgh Gazette a notice stating that they propose to enter into such an agreement as aforesaid with the persons specified in the notice and giving the

name and date of issue of a local newspaper in which the notice explaining the effect of the proposals will be found.

1ST SCH.
—cont.

21. The Secretary of State shall not approve the agreement before the expiration of the said twenty-eight days or before the expiration of twenty-five days from the publication of the said notice in the Edinburgh Gazette, and before approving it shall consider any objections which may have been received by him before the expiration of either of the said periods, and if before such expiration an objection is received by the Secretary of State from any authority or board or undertakers to whom a notice is required to be sent under paragraph 19 of this Schedule or who appear to him to be affected by the proposed agreement and the objection is not withdrawn, the Secretary of State shall, before approving the agreement, cause a local inquiry to be held.

22. On approving by order any agreement to which this Part of this Schedule applies, the Secretary of State shall give notice of the making of the order to any authority or board or undertakers mentioned in the last foregoing paragraph who have objected to the approval of the agreement and have not withdrawn that objection, and in that case the order shall not have effect until the expiration of twenty-eight days from the date of the said notice, and if within that period any such authority or board or undertakers give notice to the Secretary of State that they object to the order and the objection is not withdrawn, the order shall be subject to special parliamentary procedure.

23. The expenses incurred by the Secretary of State in connection with the approval of agreements under this Part of this Schedule (whether by order or otherwise) and the confirmation of orders thereunder shall be paid by the authority to whom the agreement or order relates, and, in a case where there are two or more such authorities, the Secretary of State may apportion such expenses between them.

PART IV.

Byelaws made by local water authorities under sections 60 and 61.

24. Byelaws to which this Part of this Schedule applies shall be made under the common seal of the local water authority and shall not have effect until they are confirmed by the Secretary of State.

25. At least one month before application for confirmation of the byelaws is made—

- (a) notice of the intention to apply for confirmation shall be published in the Edinburgh Gazette and in one or more local newspapers circulating in the area to which the byelaws apply, and
- (b) a copy of the byelaws shall be sent to the local authority of every district wholly or partly comprised in the area to which the byelaws apply.

26. For at least one month before such application is made, a copy of the byelaws shall be deposited at the offices of the local water authority and shall at all reasonable hours be open to public inspection without payment.

1ST SCH.
—cont.

27. The local water authority shall, at the request of any person interested, furnish to him a copy of the proposed byelaws upon payment of such sum not exceeding one shilling as they think reasonable.

28. Any person aggrieved by any such byelaws may, within one month after the publication of the notice required by paragraph 25 hereof, notify his objection and the ground of his objection to the Secretary of State who shall consider them before confirming the byelaws.

29. The Secretary of State may confirm with or without modification or refuse to confirm any byelaws submitted to him under this Part of this Schedule for confirmation, and may fix a date on which the byelaws are to come into operation and if no date is so fixed the byelaws shall come into operation at the expiration of one month from the date of their confirmation.

30. A copy of the byelaws when confirmed shall be printed and deposited at the offices of the local water authority and shall at all reasonable hours be open to public inspection without payment, and a copy thereof shall, on application, be furnished to any person on payment of such sum not exceeding one shilling as the authority think reasonable.

31. The production of a printed copy of the byelaws on which is endorsed a certificate purporting to be signed by the clerk or secretary of the authority, stating—

- (a) that the byelaws were made by the authority ;
- (b) that the copy is a true copy of the byelaws ;
- (c) that on a specified date the byelaws were confirmed by the Secretary of State ; and
- (d) the date, if any, fixed by the Secretary of State for the coming into operation of the byelaws ;

shall be prima facie evidence of the facts stated in the certificate and without proof of the handwriting or official position of any person purporting to sign a certificate in pursuance of this paragraph.

SECOND SCHEDULE.

COMPULSORY PURCHASE ORDERS.

Sections 20, 21.

Form, contents and procedure.

1. A compulsory purchase order made under this Act shall be in the prescribed form and shall describe by reference to a map the land to which it applies and shall incorporate, subject to the modification hereinafter mentioned and any necessary adaptations—

- (a) the Lands Clauses Acts (except sections one hundred and twenty to one hundred and twenty-five of the Lands Clauses Consolidation (Scotland) Act, 1845) ;
- (b) the Acquisition of Land (Assessment of Compensation) Act, 1919, and Part II of the Town and Country Planning (Scotland) Act, 1945 ;

9 & 10 Geo. 5.
c. 57.
8 & 9 Geo. 6.
c. 33.

(c) section six of the Railway Clauses Consolidation (Scotland) Act, 1845; and

J11

2ND SCH.
—cont.

(d) Part IV of the Fourth Schedule to this Act.

2. The Lands Clauses Acts, the Acquisition of Land (Assessment of Compensation) Act, 1919, and the said section six shall be incorporated subject to the modification that the arbiter shall not take into account any building erected or any improvement or alteration made or any interest in land created after the date on which notice of the order having been made is published in accordance with the provisions of this Schedule if, in the opinion of the arbiter, the erection of the building, or the making of the improvement or alteration, or the creation of the interest in respect of which a claim is made was not reasonably necessary and was carried out with a view to obtaining or increasing compensation.

3. Before submitting the order to the Secretary of State the local water authority shall—

(a) publish in the Edinburgh Gazette and in one or more newspapers circulating within their limits of supply a notice in the prescribed form stating that an order has been made and describing the area comprised therein and naming a place where a copy of the order and of the map referred to therein may be seen at all reasonable hours; and

(b) serve on every owner, lessee and occupier (except tenants for a month or less period than a month) of any land to which the order relates a notice in the prescribed form stating the effect of the order and that it is about to be submitted to the Secretary of State for confirmation and specifying the time within and the manner in which objections thereto can be made.

4. If no objection is duly made by any of the persons on whom notices are required to be served, or if all objections so made are withdrawn, then, subject to the provisions hereinafter in this Schedule contained, the Secretary of State may if he thinks fit confirm the order with or without modification, but in any other case he shall before confirming the order cause a local inquiry to be held and shall consider any objection not withdrawn and the report of the person who held the inquiry and may then confirm the order either with or without modification:

Provided that the Secretary of State may require any person who has made an objection to state in writing the grounds thereof and may confirm the order without causing a local inquiry to be held if he is satisfied that every objection duly made and not withdrawn relates exclusively to matters which can be dealt with by the arbiter by whom the compensation is to be assessed.

5. An order as confirmed by the Secretary of State shall not, unless all persons interested consent, authorise the local water authority to purchase compulsorily any land which the order would not have authorised them so to purchase if it had been confirmed without modification.

6. In construing for the purposes of this Schedule or any order made thereunder any enactment incorporated in the order, this Act, together with the order, shall be deemed to be the special Act, and the local water authority shall be deemed to be the promoters of the undertaking or the company.

2ND SCH.
—cont.*Validity and date of operation.*

7. So soon as may be after a compulsory purchase order has been confirmed by the Secretary of State, the authority shall publish in a newspaper circulating in their limits or proposed limits of supply a notice in the prescribed form stating that the order has been confirmed and naming the place where a copy of the order as confirmed and of the map referred to therein may be seen at all reasonable hours, and shall serve a like notice on every person who, having given notice to the Secretary of State of his objection to the order, appeared at the local inquiry in support of his objection.

8. If any person aggrieved by such an order as aforesaid desires to question the validity thereof on the ground that it is not within the powers of this Act or that any requirement of this Act has not been complied with, he may, within six weeks after the publication of the notice of confirmation of the order, make an application for the purpose to the Court of Session, and where any such application is duly made the Court—

- (i) may by interim order suspend the operation of the order either generally or in so far as it affects any property of the applicant until the final determination of the proceedings; and
- (ii) if satisfied upon the hearing of the application that the order is not within the powers of this Act or that the interests of the applicant have been substantially prejudiced by any requirement of this Act not having been complied with, may declare the order null and void either generally or in so far as it affects any property of the applicant.

9. Subject to the provisions of the last foregoing paragraph, the order shall not be questioned in any legal proceedings either before or after the order is confirmed, and shall become operative on the date on which notice of confirmation of the order is published in accordance with the provisions of this Schedule.

10. Except by leave of the Court of Session, no appeal shall lie to the House of Lords from a decision of the Court of Session in proceedings under this Schedule.

11. The provisions of paragraphs 8 to 10 of this Schedule shall not apply to an order which is confirmed by Act of Parliament under subsection (4) of section two, as read with section ten, of the Statutory Orders (Special Procedure) Act, 1945, or under section six of that Act, but except as aforesaid shall have effect in relation to an order to which that Act applies as if for the reference in paragraph 8 to the publication of notice of confirmation of the order there were substituted a reference to the date on which the order comes into operation under the Statutory Orders (Special Procedure) Act, 1945, and as if in paragraph 9 the words from “ and shall become operative ” to the end of the paragraph were omitted.

THIRD SCHEDULE.

PROVISIONS AS TO BREAKING OPEN STREETS AND
LAYING COMMUNICATION AND SUPPLY PIPES.

PART I.

Section 25.

Provisions as to breaking open streets, &c.

1. Subject to the provisions of this Part of this Schedule, a local water authority may, within their limits of supply for the purpose of laying, constructing, inspecting, repairing, altering, renewing or removing mains, service pipes, plant or other works, and outside those limits for the purpose of laying any mains which they are authorised to lay and of inspecting, repairing, altering, renewing or removing mains, break open the roadway and footpaths of any street and of any bridge carrying a street, and any cellar or vault below any street, and any sewer, drain or tunnel in or under any such roadway or footpath, and may remove and use the soil or other materials in or under any such roadway or footpath :

Power to break open streets.

Provided that they shall in the exercise of the powers conferred by this paragraph cause as little inconvenience and do as little damage as may be, and for any damage done shall pay compensation to be determined, in case of dispute, by arbitration.

2. Not less than fourteen clear days before they commence to break open the roadway or footpath of any street or bridge, or any cellar or vault, or any sewer, drain or tunnel, the authority shall give notice of their intentions and of the time when they propose to commence the work to the persons having the control or management of the street, bridge, cellar, vault, sewer, drain or tunnel in question or to some officer of those persons authorised by them to receive such notices :

Notice to be given before breaking open street, etc.

Provided that—

- (a) in cases of emergency arising from defects in any existing pipes, plant or works, it shall be sufficient if the notice required by this paragraph is given as soon as possible after the necessity for the work becomes known to the authority ;
- (b) where the roadway or footpath is broken open for the purposes mentioned in paragraph 7 of this Schedule, the notice shall be seventy-two hours instead of fourteen days.

3.—(1) Subject to the provisions of this paragraph, the authority shall not, save in such cases of emergency as aforesaid, break open the roadway or footpath of any street or bridge, or any cellar or vault, or any sewer, drain or tunnel, except under the supervision of, and in accordance with plans approved by, the persons having the control or management thereof or their authorised officer :

Streets, etc., not to be broken open except under supervision of persons responsible therefor.

Provided that if any difference arises in connection with the plans submitted for approval, that difference shall be referred to an arbiter to be appointed, in default of agreement, by the Secretary of State, and in cases where a sewer or drain is affected the arbiter may direct the authority to execute such work as he may deem necessary for preventing any temporary interruption of drainage through that sewer or drain, and the authority shall comply with any direction so given.

3RD SCH.
—cont.

(2) Notwithstanding anything in the last foregoing subparagraph, if the persons having the control or management of a street, bridge, cellar, vault, sewer, drain or tunnel or their authorised officer, after having received such notice of the authority's intentions as is mentioned in the last foregoing paragraph, fail to question the sufficiency or propriety of any plans submitted to them, or fail to submit any alternative plans to the authority, or fail to attend and exercise supervision over the work, the authority may proceed to carry out the work.

Protection
for railway
companies,
navigation
authorities,
tramway
undertakers,
etc.

4.—(1) Except in cases of emergency arising from defects in existing pipes, plant or works, the roadway or footpath of a street or bridge which is under the control or management of, or maintainable by, a railway company or navigation authority shall not be broken open without their consent, but that consent shall not be unreasonably withheld, and any question whether or not consent is unreasonably withheld shall be referred to and determined by the Secretary of State.

(2) Where the authority propose to break open the roadway or footpath of any length of street which forms a level-crossing, or crosses over or under a railway or other works of a railway company or navigation authority, and which is not under the control or management of the railway company or navigation authority, they shall give to the railway company or navigation authority the like notice as they are required by the last but one foregoing paragraph to give to the persons having the control or management of the street and, if and in so far as the proposed work is likely to affect the structure of any bridge or other works belonging to the railway company or navigation authority, shall carry out the work to the reasonable satisfaction of the engineer or other authorised officer of the railway company or navigation authority in accordance with plans approved by him.

Any dispute arising under this subparagraph between the authority and a railway company or navigation authority shall be determined by arbitration.

(3) The last foregoing subparagraph shall, with any necessary adaptation, apply in relation to a level-crossing which belongs to persons not being a railway company or navigation authority, as it applies in relation to a level-crossing belonging to such a company or authority.

33 & 34 Vict.
c. 78.

(4) For the protection of persons entitled to the benefit of section thirty-two of the Tramways Act, 1870 (which relates to the rights of authorities and companies, etc. to open roads) that section shall be construed as applying to operations authorised by the special Act, and in the said section as so applied any reference to a tramway shall be construed as including a reference to a trolley vehicle system.

(5) Nothing contained in this paragraph for the protection of owners of level-crossings shall affect the decision of any question which may arise as to the legality of the construction of, or the right to continue, any level-crossing.

Streets, etc.,
broken open to
be reinstated
without delay.

5.—(1) When for the purpose of executing any work the authority break open the roadway or footpath of any street or bridge or any cellar or vault, or any sewer, drain or tunnel, they shall with all

convenient speed complete the work and fill in the ground and reinstate and make good the roadway or footpath or the cellar or vault or the sewer, drain or tunnel, as the case may be, and remove all rubbish resulting from their operations, and shall, after replacing and making good the roadway or footpath, keep it in good repair for three months and for such further time, if any, not being more than twelve months in the whole, as the soil may continue to subside.

3RD SCH.
—cont.

(2) So long as any such roadway or footpath remains broken open or obstructed, the authority shall make adequate arrangements for the control of traffic and shall cause the roadway or footpath to be properly fenced and guarded at all times and to be efficiently lighted between the hours of sunset and of sunrise.

(3) If the authority fail to comply with any of the requirements of this paragraph, the persons having the control or management of the street, bridge, cellar, vault, sewer, drain or tunnel in question, may themselves execute any work necessary to remedy the default and may recover the expenses reasonably incurred by them in so doing from the authority as a civil debt.

6.—(1) The provisions of this Part of this Schedule shall apply in relation to any land within the limits of a street, but not included in a roadway or footpath thereof, as if that land were or formed part of a footpath of the street. Application to verges and streets not maintainable at the public expense.

(2) In this Part of this Schedule, the expression "persons having the control or management" shall, in relation to a street not maintainable at the public expense, be deemed to include the authority by whom the street would be maintainable if it became a highway, and accordingly any notice required by paragraph 2 of this Schedule and a copy of the plans referred to in paragraph 3 thereof shall be served on that authority, but the authority shall not take any action under subparagraph (3) of the last foregoing paragraph except at the request and on behalf of the other persons having the control or management of the street, bridge, cellar, vault, sewer, drain or tunnel in question.

PART II.

Section 28.

Provisions as to laying communication pipes and supply pipes, etc.

7.—(1) A local water authority may in any street within their limits of supply lay such service pipes with such stopcocks and other fittings as they deem necessary for supplying water to premises within the said limits, and may from time to time inspect, repair, alter or renew and may at any time remove any service pipe laid in a street whether by virtue of this section or otherwise : Power to lay service pipes, etc.

Provided that before exercising any of the powers conferred by this paragraph, the authority shall, except in cases of emergency arising from defects in any existing pipes, plant or works, give not less than seventy-two hours' notice to the persons having control or management of the street.

(2) Where a service pipe has been lawfully laid in, on or over any land not forming part of a street, the authority may from time to time enter upon that land and inspect, repair, alter, renew or remove the then existing pipe or lay a new pipe in substitution therefor, but shall pay compensation for any damage done by them.

Any dispute as to the amount of compensation to be paid under this subparagraph shall be determined by arbitration.

3RD SCH.
—cont.Laying of
supply pipes,
etc.

8. An owner or occupier of any premises within the limits of supply who desires to have a supply of water for his domestic purposes from the waterworks of the authority shall, subject as hereinafter provided, comply with the following requirements:—

- (a) he shall give to the authority fourteen days' notice of his intention to lay the necessary supply pipe; and
- (b) he shall lay the supply pipe at his own expense, having first obtained, as respects any land not forming part of a street, the consent of the owners and occupiers thereof:

Provided that, where any part of the supply pipe is to be laid in a street he shall not himself break open the street or lay that part of the pipe.

Laying of
communication
pipes, etc.

9.—(1) Upon receipt of such a notice as is referred to in the last foregoing paragraph, the authority shall, within fourteen days after the person by whom the notice was given has laid a supply pipe in accordance with the provisions of the last foregoing paragraph, lay the necessary communication pipe and any part of the supply pipe which is to be laid in a street and shall connect the communication pipe with the supply pipe:

Provided that, where any part of the supply pipe is to be laid in a street they may elect to lay a main in the street for such distance as they think fit in lieu of a supply pipe, and in that case shall lay a communication pipe from that main and connect it with the supply pipe.

(2) The expenses reasonably incurred by the authority in executing the work which they are required or authorised by this paragraph to execute shall be repaid to them by the person by whom the notice was given and may be recovered by them from him as a civil debt:

Provided that, if under the provisions of this paragraph the authority lay a main in lieu of part of a supply pipe, the additional cost incurred in laying a main instead of a supply pipe shall be borne by them.

(3) Notwithstanding anything in the foregoing provisions of this paragraph, an authority to whom such a notice as aforesaid is given may, within seven days after the receipt thereof, require the person giving the notice either to pay to them in advance the cost of the work, as estimated by their engineer, or to give security for payment thereof to their satisfaction, and, where they make such a requirement, the period of fourteen days referred to in subparagraph (1) of this paragraph shall not commence to run until the requirement has been complied with.

If any payment so made to the authority exceeds the expenses which under the foregoing provisions of this paragraph they would be entitled to recover from the person giving the notice, the excess shall be repaid by them, and, if and so far as those expenses are not covered by the payment, they may recover the balance from him as a civil debt.

Power of
authority to
require separate
service pipes.

10.—(1) Subject to the provisions of this paragraph the authority may require the provision of a separate service pipe for each house supplied, or to be supplied by them, with water.

(2) If, in the case of a house already supplied with water but not having a separate service pipe, the authority give notice to the owner of the house, requiring the provision of such a pipe, the owner

shall within three months lay so much of the required pipe as will constitute a supply pipe and is not required to be laid in a street, and the authority shall, within fourteen days after he has done so, lay so much of the required pipe as will constitute a communication pipe or a supply pipe to be laid in a street and make all necessary connections.

(3) If an owner upon whom a notice has been served under the last foregoing subparagraph fails to comply therewith, the authority may themselves execute the work which he was required to execute.

(4) The expenses reasonably incurred by the authority in executing the work which they are required by subparagraph (2) of this paragraph to execute, or which they are empowered by the last foregoing subparagraph to execute, shall be repaid to them by the owner of the house and may be recovered by them from him as a civil debt, but without prejudice to the rights and obligations as between themselves, of the owner and the occupier of the house.

(5) Where two or more houses are being supplied with water by a single service pipe, the authority shall not require the provision of separate service pipes for those houses until either—

- (a) the existing supply pipe becomes so defective as to require renewal, or is no longer sufficient to meet the requirements of the houses ; or
- (b) the houses are, by structural alterations to one or more of them, converted into a larger number of houses.

11. Where any premises which are within the limits of supply about on, or are situated near to, any street which is, as to the whole or a part of its width, outside those limits, the authority may for the purpose of supplying water to the owner or occupier of those premises exercise with respect to the whole width of the street the like powers of laying, inspecting, repairing, altering, renewing and removing service pipes with any necessary stopcocks and fittings and of breaking open the street for that purpose as are exerciseable by them with respect to streets within the said limits, subject however to the like conditions and obligations.

Power to break open streets forming boundary of limits of supply.

12.—(1) On every service pipe laid after the commencement of this Act the authority shall, and on every service pipe laid before that date the authority may, fit a stopcock enclosed in a covered box, or pit, of such size as may be reasonably necessary.

Provisions as to position, etc., of stopcocks.

(2) Every stopcock fitted on a service pipe after the commencement of this Act shall be placed in such position as the authority deem most convenient :

Provided that—

- (a) a stopcock in private premises shall be placed as near as is reasonably practicable to the street from which the service pipe enters those premises ; and
- (b) a stopcock in a street shall, after consultation with the highway authority concerned, be placed as near to the boundary thereof as is reasonably practicable.

FOURTH SCHEDULE.

Section 43.

PROVISIONS TO BE INCORPORATED IN ORDERS
RELATING TO WATER UNDERTAKINGS.*Arrangement.*

- Part I. (Section 1) Interpretation.
 Part II. (Sections 2 to 9) Works and Lands.
 Part III. (Section 10) Compensation Water.
 Part IV. (Sections 11 to 18) Minerals underlying Waterworks.
 Part V. (Sections 19 to 24) Supply of Water for Public Purposes.
 Part VI. (Section 25) Constancy and Pressure of Supply.
 Part VII. (Sections 26 to 36) Provisions for preventing Waste, etc.,
 of Water, and as to Meters and other Fittings.
 Part VIII. (Sections 37 to 39) Pollution of Water by Manufacture of
 Gas, etc.
 Part IX. (Sections 40 to 46) General and Miscellaneous.

PART I.

INTERPRETATION.

Definitions, etc. 1.—(1) In this Schedule the following expressions shall, subject to any express provision or anything in the context to the contrary, have the meanings hereby respectively assigned to them, that is to say :—

“ authorised ” means authorised by the special Act ;
 “ consumer ” means a person supplied, or about to be supplied,
 with water by the undertakers ;
 “ factory ” means a factory within the meaning of the Factories
 Act, 1937 ;

1 & 2 Geo. 6.
c. 72.

“ fire authority ” has the same meaning as in the Fire Brigades
 Act, 1938 ;

“ prescribed ” means prescribed by the special Act ;

“ special Act ” means the Act or Part of an Act, or order with which
 any provisions of this Schedule are incorporated, with or
 without modification, and includes those provisions as so
 incorporated ;

“ telegraphic line ” has the same meaning as in the Telegraph
 Act, 1878 ;

“ trunk main ” means a main constructed for the purpose of
 conveying water from a source of supply to a filter or reser-
 voir, or from one filter or reservoir to another filter or reser-
 voir, or for the purpose of conveying water in bulk from one
 part of the limits of supply to another part of those limits,
 or for the purpose of giving or taking a supply of water in
 bulk ;

“ undertakers ” means the persons whose water undertaking is
 authorised or regulated by the special Act ;

(2) Other expressions in this Schedule have the respective meanings
 assigned to them in the Water (Scotland) Act, 1946.

(3) References in this Schedule to any enactment shall be construed
 as including references to that enactment as amended by any subsequent
 enactment including the Water (Scotland) Act, 1946.

PART II.

4TH SCH.
—cont.

WORKS AND LANDS.

2. In the construction of any authorised works the undertakers may deviate laterally to any extent not exceeding the limits of deviation shown on the plans submitted to the Secretary of State and, where on any street no such limits are shown, the boundaries of the street (including for this purpose any verge or roadside waste adjoining it) shall be deemed to be such limits, and they may also deviate vertically from the levels shown on the deposited sections to any extent :

Permissible
limits of
deviation.

Provided that—

- (a) no embankment for a reservoir shall be constructed at a greater height above the general surface of the ground than that shown on the said plans and six feet in addition thereto ; and
- (b) except for the purpose of crossing a stream, canal, dyke, watercourse or railway, or of crossing any lands where the consent of all persons interested in those lands has been obtained, no pipe or other conduit or aqueduct shall be raised above the surface of the ground otherwise than in accordance with the said plans.

3. The undertakers shall not construct any works for taking or intercepting water (other than works for intercepting foul water) from any lands acquired by them, unless the works are authorised by, and the lands on which the works are to be constructed are specified in, the special Act or some other enactment.

Limit on
powers of
undertakers
to take water.

4. Subject to the provisions of the last foregoing section and to any other provisions of the special Act limiting the powers of the undertakers to abstract water, the undertakers, in addition to any works specifically authorised, may, in, on or over any land for the time being held by them in connection with their water undertaking construct, lay or erect for the purposes thereof or in connection therewith, and may maintain such reservoirs, sluices, tanks, cisterns, aqueducts, tunnels, culverts, mains, pipes, filters, engines, pumps, machinery, buildings and things for or in connection with the supply of water as they deem necessary :

General power
to construct
subsidiary
works.

Provided that any electrical works or apparatus constructed, laid or erected under this section shall be so constructed, laid or erected, and so maintained and used, as to prevent interference with any telegraphic line belonging to or used by the Postmaster General, or with telegraphic communication by means of any such line.

5.—(1) For the purpose of establishing telegraphic, telephonic or other electrical communication between their offices and any part of their works or between different parts of their works, the undertakers may lay and erect in on or over any street and, with the consent of the owners and occupiers of any other land, in on or over that land, such wires, posts, conductors and other apparatus as they deem necessary and the provisions of the special Act relating to the breaking open of streets by the undertakers shall, with any necessary modification or adaptation, apply as respects any street in relation to the laying, erection and maintenance of any such wires posts, conductors or other apparatus :

Power of
undertakers
to lay or erect
telephone
wires, etc.

4TH SCH.
—cont.

Provided that the undertakers shall not lay or erect any such wires, posts, conductors or other apparatus except with the consent of the local authority and highway authority concerned and in accordance with such conditions as either of those authorities may attach to their consent, but such consent shall not be unreasonably withheld nor shall unreasonable conditions be attached thereto, and any question whether a withholding of consent or a condition is reasonable or not shall be referred to an arbiter to be appointed, in default of agreement, by the Secretary of State.

(2) The undertakers shall at their own expense remove any wires, posts, conductors or other apparatus laid or erected by them under the provisions of this section if they are required to do so by the local authority or a highway authority for the purpose of enabling any widening or other improvement to be carried out to a street.

32 & 33 Vict.
c. 73.

(3) Wires, posts, conductors or other apparatus laid or erected by the undertakers under the provisions of this section shall not be used in contravention of the exclusive privilege conferred upon the Postmaster General by the Telegraph Act, 1869, or be installed or worked in contravention of the provisions of the Wireless Telegraphy Acts, 1904 to 1926, and shall be so constructed, maintained and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster General or with telegraphic communication by means of any such line.

(4) Where the undertakers propose, in the exercise of their powers under this section, to lay or erect any wires, posts, conductors or other apparatus over, under or in the vicinity of any electric line belonging to any electricity undertakers, the undertakers shall take all reasonable precautions so as not injuriously to affect, whether by induction or otherwise, the working or use of, or the currents in, the electric line.

Any question which may arise between the undertakers and any electricity undertakers under this subsection shall be determined by an arbiter to be agreed between the undertakers and the electricity undertakers or failing agreement, to be appointed by the President of the Institution of Electrical Engineers, and the arbiter may direct the undertakers to make any alterations in their wires, posts, conductors or other apparatus so as to comply with the provisions of this subsection and the undertakers shall make those alterations accordingly.

In this subsection the expressions "electric line" and "electricity undertakers" have the same respective meanings as in the Electricity (Supply) Acts, 1882 to 1936.

Penalty for
obstructing
construction
of works.

6. Any person who wilfully obstructs a person engaged by or under authority of the undertakers in setting out the line or site of any authorised works, or knowingly pulls up any peg or stake driven into the ground for the purpose of setting out such line or site or knowingly defaces or destroys anything made or erected for that purpose, shall be liable to a fine not exceeding five pounds.

Power to
acquire
servitudes for
underground
work.

7.—(1) Where the undertakers are empowered by the special Act to execute any underground works, they may, in lieu of purchasing land compulsorily for the purpose of executing those works, be authorised by means of a compulsory purchase order made by the

undertakers and confirmed by the Secretary of State to purchase only such servitudes and rights over or in that land as may be sufficient for the said purpose, and the provisions of the Second Schedule to the Water (Scotland) Act, 1946, shall apply, with such adaptations as may be necessary, to any compulsory purchase order made under this section.

4TH SCH.
—cont.

(2) The undertakers shall not be required or, except by agreement, be entitled to fence off or sever from adjoining lands any lands in respect of which they have acquired only servitudes or rights under the provisions of this section, and subject to those servitudes or rights and to any other restrictions imposed by the special Act, the owners or occupiers for the time being of those lands shall have the same rights of using and cultivating them as if that Act had not been passed.

8. Persons empowered by the Lands Clauses Acts to sell, convey and dispose of any lands may, subject to the provisions of those Acts and of the special Act, grant to the undertakers any servitude or right required for the purposes of the special Act over or in those lands, and the provisions of the Lands Clauses Acts with respect to lands and feuduties, ground annuals, rents or other annual or recurring payments shall, so far as applicable, apply in relation to such grants and to such servitudes and rights :

Persons under disability may grant servitudes, etc.

Provided that nothing in this section shall be construed as empowering persons to grant any servitude or right of water in which any other person has an interest, unless that other person concurs in the grant.

9.—(1) Any private right of way over land which the undertakers are authorised to acquire compulsorily shall, if they so resolve and give notice of their resolution to the owner of the right, be extinguished as from the acquisition by them of the land, or as from the expiration of one month from the service of the notice, whichever may be the later.

Extinction of private rights of way.

(2) The undertakers shall pay compensation to all persons interested in respect of any such right so extinguished, and such compensation shall, in case of dispute, be settled in manner provided by the Lands Clauses Acts with respect to the taking of lands otherwise than by agreement.

PART III.

COMPENSATION WATER.

10.—(1) During the construction of any authorised impounding reservoir the undertakers may, subject as hereinafter provided, take from any stream to be impounded thereby such water as they may require :

Provisions as to compensation water.

Provided that before taking any water from the stream they shall, on an approved site, construct an approved gauge to gauge the flow of the stream, and, while the flow of water through or over the gauge is less than the prescribed flow, they shall not take any water.

(2) After the completion of the reservoir the undertakers shall, at an approved point within such limits as may be prescribed, discharge

4TH SCH.
—*cont.*

into the stream from, or from streams feeding, the reservoir during every day of twenty-four hours reckoned from midnight in a uniform and continuous flow a quantity of water not less than the prescribed quantity, and, for the purpose of gauging such discharge, they shall construct and maintain in good order approved gauges on approved sites.

(3) If the undertakers—

- (a) fail to construct or maintain in good order any such gauge as aforesaid, or refuse to allow any person interested to inspect and examine any such gauge or any records made thereby or kept by them in connection therewith or to take copies of any such records; or
- (b) take any water from the stream contrary to the provisions of subsection (1) of this section, or fail to comply with the requirements of subsection (2) of this section with respect to the discharge of water into the stream,

they shall, without prejudice to their civil liability, if any, to a person aggrieved, be liable, in the case of an offence under paragraph (a) of this subsection, on summary conviction to a fine not exceeding fifty pounds in respect of each day on which the offence has been committed or has continued, and in the case of an offence under paragraph (b) of this subsection—

- (i) on summary conviction, to a fine not exceeding fifty pounds in respect of each such day; and
- (ii) on conviction on indictment, to a fine not exceeding five hundred pounds in respect of each such day.

(4) In this section, the expression “gauge” includes a gauge weir or other apparatus for measuring the flow of water, and the expression “approved” means approved by the Secretary of State; and for the purposes of this section a fishery district board and a navigation authority shall be deemed to be interested in the flow of water in, and the discharge of water into, any stream within their fishery district or, as the case may be, any part of their system of navigation or any stream feeding such a stream or any part of that system, and shall be deemed to be aggrieved by the commission of an offence under this section in relation to any such stream.

(5) The foregoing provisions of this section shall be deemed to have been accepted by all persons interested as providing full compensation for all water impounded by the authorised works, except in respect of any land between the foot of the embankment of the reservoir and the point of discharge approved for the purposes of subsection (2) of this section.

PART IV.

MINERALS UNDERLYING WATERWORKS.

Undertakers
not entitled
to underlying
minerals unless
expressly
purchased.

11. When the undertakers purchase any land, they shall become entitled to such parts of any mines of coal, ironstone, slate or other minerals under that land as it may be necessary for them to dig, carry away or use in the construction of any waterworks authorised by the special Act, but, save as aforesaid, they shall not by virtue only of their purchase of the land become entitled to any such mines or minerals which shall, save as aforesaid, be deemed to be excepted from the conveyance of the land unless expressly mentioned therein as conveyed thereby.

12.—(1) The undertakers shall, within six months after the first occasion on which any pipes or other conduits or underground works are laid or constructed by them after this section is incorporated with their enactments, cause the course and situation of all existing pipes or other conduits for the collection, passage or distribution of water and underground works belonging to them to be marked on a map (drawn on a scale of not less than six inches to one mile), and shall, from time to time within six months after the making of any alterations or additions, cause the said map to be so corrected as to show the course and situation of all such pipes and conduits and underground works for the time being belonging to them, and the map or a copy thereof bearing the date of its preparation and of the last occasion on which it was corrected shall be kept at the office of the undertakers.

4TH SCH.

—cont.

Map of underground works to be prepared and kept up to date.

In this subsection the expression "pipes" does not include service pipes.

(2) The said map shall at all reasonable hours be open to inspection by any person interested free of charge.

13. Subject to any agreement to the contrary, if the owner, lessee or occupier of any mines of coal, ironstone, slate or other minerals lying under the reservoirs or buildings of the undertakers or any of their pipes or other conduits or underground works shown on the map referred to in the last foregoing section, or lying within the prescribed distance therefrom, or, if no distance be prescribed, within forty yards therefrom, desires to work the said mines or minerals, he shall give to the undertakers thirty days' notice of his intention so to do.

Mines lying near the works not to be worked without notice to undertakers.

14.—(1) Upon receipt of such a notice as aforesaid, the undertakers may cause the said mines or minerals to be inspected by any person appointed by them for the purpose, and if it appears to them that the working thereof is likely to damage any of their reservoirs or buildings or pipes or other conduits or underground works shown on the said map, and if they are willing to pay compensation for the mines or minerals to the owner, lessee or occupier thereof, then he shall not work them, and the amount of the compensation to be paid shall, in case of dispute, be determined by arbitration.

If undertakers unwilling to pay compensation, mines may be worked in usual manner.

(2) If the undertakers have not, before the expiration of the said thirty days, stated their willingness to treat with the owner, lessee or occupier for the payment of compensation, it shall be lawful for him to work the said mines and minerals and to drain them by means of pumps or otherwise as if the special Act had not been passed, so however that no wilful damage be done to any of the said property or works of the undertakers and that the mines and minerals be not worked in an unusual manner.

(3) Any damage or obstruction occasioned to any of the said property or works of the undertakers by the working of such mines or minerals in an unusual manner shall be forthwith repaired or removed and the damage made good by the owner, lessee or occupier of the mines or minerals, and if such repair or removal be not effected forthwith, or if the undertakers deem it necessary to take action without waiting for the work to be done by the owner, lessee or occupier, the undertakers may execute the work and recover from the owner, lessee or occupier the expenses reasonably incurred by them in so doing.

4TH SCH.

—cont.

Power to
make mining
communication
where con-
tinuous working
is prevented.

15. If the working of any such mines or minerals as aforesaid lying under the reservoirs or buildings of the undertakers or any of their pipes or other conduits or underground works shown on the map referred to in section twelve of this Schedule or lying within the above-mentioned distance therefrom mentioned in section thirteen of this Schedule, be prevented as aforesaid by reason of apprehended injury thereto, the respective owners, lessees and occupiers of the mines or minerals may cut and make such and so many airways, headways, gateways or water levels through the mines, measures or strata the working whereof is so prevented as may be requisite to enable them to ventilate, drain and work any mines or minerals on each or either side thereof, but no such airway, headway, gateway, or water level shall be of greater dimensions or sections than the prescribed dimensions or sections, or, if no dimensions are prescribed, eight feet wide and eight feet high, nor be cut or made upon any part of the said property or works of the undertakers so as to cause injury thereto.

Undertakers
to pay com-
pensation for
expenses
incurred by
reason of
severance.

16.—(1) Subject to any agreement to the contrary, the undertakers shall from time to time pay compensation to the owner, lessee or occupier of any mines of coal, slate, ironstone and other minerals lying on both sides of any reservoir, building, pipe or other conduit or other works of the undertakers for any loss and additional expense incurred by him by reason of the severance of the lands above such mines or minerals by the reservoir or other works, or by reason of the continuous working of such mines or minerals being interrupted as aforesaid, or by reason of their being worked under the restrictions imposed by the special Act, and also for any such mines or minerals not purchased by the undertakers as cannot be worked or won by reason of the making and continuance of the said works, or by reason of such apprehended injury from the working thereof as aforesaid.

(2) The amount of any such compensation shall, in case of dispute, be determined by arbitration.

Undertakers
may enter and
inspect the
working of
mines.

17. For the purpose of ascertaining whether any such mines or minerals as aforesaid are being, have been or are about to be, worked so as to damage any of their said works, any authorised officer of the undertakers, after giving twenty-four hours' notice and on producing, if so required, some duly authenticated document showing his authority, may enter upon any lands in, on or near which the works are situate and under which they know or suspect that any such mines are being, have been or are about to be, worked, and may enter any such mines and the works connected therewith, using for his entry, inspection and return any apparatus or machinery belonging to the owner, lessee or occupier of the mines, and may use all necessary means for discovering the distance from the said works to the parts of the mines which are being, have been, or are about to be, worked.

Undertakers
not exempted
from liability
for injury to
mines.

18. Nothing in the special Act shall exempt the undertakers from liability to any action or other legal proceeding to which they would have been liable in respect of any damage or injury done or occasioned to any mines by means, or in consequence, of their waterworks, if those works had been constructed or maintained otherwise than by virtue of the special Act.

PART V.

SUPPLY OF WATER FOR PUBLIC PURPOSES.

4TH SCH.
—cont.

19. The undertakers shall, at the request of the fire authority concerned, fix fire hydrants on their mains (other than trunk mains) at such places as may be most convenient for affording a supply of water for extinguishing any fire which may break out within the limits of supply, and shall keep in good order and from time to time renew every such hydrant.

Undertakers to fix and maintain fire hydrants on pipes.

Any dispute as to the number or proper position of such hydrants shall be determined by the Secretary of State.

20. As soon as any such hydrant is complete, the undertakers shall, if required by the fire authority, deposit a key thereof at each place within the limits of supply where any public fire engine is kept, and in such other places as may be appointed by the fire authority.

Undertakers to deposit keys of hydrants at certain places.

21. The cost of such hydrants as aforesaid and of fixing, maintaining and renewing them, and of providing such keys as aforesaid shall be defrayed by the fire authority.

Cost of hydrants.

22. The undertakers shall, at the request and expense of the owner or occupier of any factory or place of business situated in, or near to, a street in which a pipe of the undertakers is laid (not being a trunk main, and being of sufficient dimensions to carry a hydrant) fix on the pipe and keep in good order and from time to time renew one or more fire hydrants, to be used only for extinguishing fires, as near as conveniently may be to that factory or place of business, and shall also at his expense comply as respects each such hydrant with the requirements of the last but one foregoing section.

Hydrants to be placed near factories, etc., at request of owners or occupiers.

23. The undertakers shall allow any person to take without payment water for extinguishing fires from any pipe on which a hydrant is fixed.

Water to be taken to extinguish fires without charge.

24.—(1) In every pipe on which a hydrant is fixed the undertakers shall provide a supply of water for cleansing sewers and drains, for cleansing and watering streets and for supplying any public pumps, baths or washhouses.

Supply of water for cleansing sewers, etc., and for other public purposes.

(2) A supply of water for the said purposes shall be provided at such rates, in such quantities and upon such terms and conditions as may be agreed between the local authority or highway authority concerned and the undertakers or as, in default of agreement, may be determined by the Secretary of State.

PART VI.

CONSTANCY AND PRESSURE OF SUPPLY.

25. Subject as hereinafter provided, the undertakers shall cause the water in all pipes on which hydrants are fixed, or which are used for giving supplies for domestic purposes, to be laid on constantly and at such a pressure as will cause the water to reach to the topmost storey of every building within the limits of supply:

Duty of undertakers as respects constant supply and pressure.

Provided that—

- (a) nothing in this section shall require them to deliver water at a height greater than that to which it will flow by gravitation through their existing mains from the service reservoir or tank from which the supply in question is taken ;

4TH SCH.
—cont.

- (b) they may in their discretion determine the service reservoir or tank from which any supply is to be taken ; and
- (c) the provisions of this section shall not apply if the undertakers are prevented from complying therewith by reason of frost, drought, unavoidable accident, or other unavoidable cause, or during the execution of necessary works.

PART VII.

PROVISIONS FOR PREVENTING WASTE, ETC. OF WATER AND AS TO
METERS AND OTHER FITTINGS.Power to
require
provision of
cisterns in
certain cases.

26.—(1) The undertakers may require that—

- (a) any building the supply of water to which need not under the special Act be constantly laid on under pressure ; and
- (b) any house the erection of which was not commenced before the coming into force of this section and to which water is required to be delivered at a height greater than thirty-five feet below the draw-off level of the service reservoir from which a supply of water is being or is to be furnished by them,

shall be provided with a cistern having a ball-tap and stopcock fitted on the pipe conveying water to it and, in the case of such a house as is mentioned in paragraph (b) of this subsection, may require, that the cistern shall be capable of holding sufficient water to provide an adequate supply to the house for a period of twenty-four hours.

(2) If the owner of the building or house whom the undertakers have in accordance with the foregoing provisions required to provide a cistern fails to comply with the requirement, or if any cistern in use in the building or house or the ball-tap and stopcock pertaining to that cistern are not kept in good repair, the undertakers may themselves provide a cistern or execute any repairs necessary to prevent waste of water, and may recover the expenses reasonably incurred by them in so doing as a civil debt from the owner of the building or house, but without prejudice to the rights and obligations, as between themselves, of the owner and the occupier.

Power to test
water fittings.

27. The undertakers may test any water fittings used in connection with water supplied by them.

Power to enter
premises to
detect waste
or misuse of
water.

28. An authorised officer of the undertakers may, between the hours of eight in the forenoon and eight in the afternoon, on producing, if required, evidence of his authority, enter any premises supplied with water by the undertakers in order to ascertain if there be any waste or misuse of such water, and, if, after production of his authority, he is refused admittance to the premises or is obstructed in making his examination, the person refusing him admittance or so obstructing him shall be liable on summary conviction to a fine not exceeding ten pounds.

Power to repair
supply pipes.

29.—(1) If the undertakers have reason to think that some injury to or defect in a supply pipe which they are not under obligation to maintain is causing, or is likely to cause, waste of water or injury to

person or property, they may execute such work as they think necessary or expedient in the circumstances of the case without being requested so to do, and, if any injury to or defect in the pipe is discovered, the expenses reasonably incurred by the undertakers in discovering it and in executing repairs shall be recoverable by them as a civil debt from the owner of the premises supplied, but without prejudice to the rights and obligations, as between themselves, of the owner and occupier of the premises.

(2) Where several houses in the ownership of different persons are supplied with water by one common supply pipe, the amount of any such expenses as aforesaid reasonably incurred from time to time by the undertakers in the maintenance and repair of that pipe may be recovered by them as a civil debt from those owners in such proportions as, in case of dispute, may be settled by arbitration.

30.—(1) If any person wilfully or negligently causes or suffers any water fitting which he is liable to maintain to—

(a) be or remain so out of order, or so in need of repair ; or

(b) be or remain so constructed or adapted, or be so used,

that the water supplied by the undertakers is, or is likely to be, wasted, misused or unduly consumed, or contaminated before use, or that foul air or any impure matter is likely to return into any pipe belonging to, or connected with a pipe belonging to, the undertakers, he shall be liable to a fine not exceeding five pounds.

(2) If any water fitting is in such a condition, or so constructed or adapted, or so used, as aforesaid, the undertakers, whether proceedings have or have not been taken in respect of the offence, may require the owner or the occupier of the premises to carry out repairs or alterations or to substitute another type of fitting, as they may reasonably consider necessary, and, if he fails to do so within forty-eight hours, may themselves carry out the work and recover from him as a civil debt the expenses reasonably incurred by them in so doing, but without prejudice to the rights and obligations, as between themselves, of the owner and the occupier.

31.—(1) An owner or occupier of premises supplied with water by the undertakers who without their consent supplies any of that water to another person for use in other premises, or wilfully permits another person to take any of that water for use in other premises, shall be liable to a fine not exceeding five pounds, unless that other person requires the water for the purpose of extinguishing a fire, or is a person supplied with water by the undertakers but temporarily unable, through no default of his own to obtain water.

4TH SCH.
—cont.
Penalty for
waste, etc., of
water by non-
repair of pipes,
etc.

Penalty for
misuse of water.

(2) If a person wrongfully takes, uses or diverts water from a reservoir, watercourse, conduit, pipe or other apparatus belonging to the undertakers, or from a pipe leading to or from any such reservoir, watercourse, conduit, pipe or other apparatus, or from a cistern or other receptacle containing water belonging to the undertakers or supplied by them for the use of a consumer of water from them, he shall be liable to a fine not exceeding five pounds.

(3) Any person who, having from the undertakers a supply of water otherwise than by meter, uses any water so supplied to him for a

4TH SCH.
—cont.

purpose not being a purpose for which he is entitled to use it shall be liable to a fine not exceeding forty shillings, without prejudice to the right of the undertakers to recover from him the value of the water misused.

Penalty for
injuring water
fittings, etc.,
or for
fraudulent use
of water.

32.—(1) If any person wilfully or negligently injures, or suffers to be injured, any water fitting belonging to the undertakers, or fraudulently alters the index of any meter used by them for measuring the water supplied by them, or prevents any such meter from registering correctly the quantity of water supplied, or fraudulently abstracts or uses water of the undertakers, he shall, without prejudice to any right or remedy competent to the undertakers in the matter, be liable to a fine not exceeding five pounds, and the undertakers may do all such work as is necessary for repairing any injury done, or for securing the proper working of the meter, and may recover the expenses reasonably incurred by them in so doing from the offender as a civil debt.

(2) For the purpose of this section, if it is proved that a consumer has altered the index of a meter, it shall rest upon him to prove that he did not alter it fraudulently, and the existence of any artificial means under the control of a consumer for preventing a meter from registering correctly or for enabling him fraudulently to abstract or use water, shall be evidence that he has fraudulently prevented the meter from registering correctly, or, as the case may be, has fraudulently abstracted or used water.

Penalty for
interference
with valves
and apparatus.

33. If any person either—

- (a) wilfully and without the consent of the undertakers ; or
(b) negligently,

turns on, opens, closes, shuts off or otherwise interferes with any valve, cock or other work or apparatus belonging to the undertakers and thereby causes the supply of water to be interfered with, he shall be liable to a fine not exceeding five pounds and, whether proceedings have been taken in respect of his offence or not, the undertakers may recover from him as a civil debt the amount of any damage sustained by them :

Provided that this section shall not apply to a consumer closing the stopcock fixed on the service pipe supplying his premises, so long as he has obtained the consent of any other consumer whose supply will be affected thereby.

Penalty for
extension or
alteration of
pipes, etc.

34.—(1) Any person who without the consent of the undertakers attaches any pipe or apparatus to a pipe belonging to the undertakers, or to a supply pipe, or makes any alteration in a supply pipe or in any apparatus attached to a supply pipe, shall be liable to a fine not exceeding five pounds, and any person who uses any pipe or apparatus which has been so attached or altered shall be liable to the same penalty, unless he proves that he did not know and had no grounds for suspecting that it had been so attached or altered.

(2) When an offence under this section has been committed, then, whether proceedings have been taken in respect of his offence or not, the undertakers may recover from the offender as a civil debt the amount of any damage sustained by them and the value of any water wasted, misused or improperly consumed.

35.—(1) A person who has not obtained the consent of the undertakers shall not connect or disconnect any meter by means of which water supplied by the undertakers is intended to be, or has been, measured for the purposes of the payment to be made to them, but, if he requires such a meter to be connected or disconnected, shall give to the undertakers not less than twenty-four hours' notice of his requirements and of the time when the work can be commenced, and thereupon the undertakers shall carry out the necessary work and may recover from him as a civil debt the expenses reasonably incurred by them in so doing.

4TH SCH.
—cont.

Meters to be connected, or disconnected, by undertakers.

(2) A person who contravenes any of the provisions of this section, and undertakers who fail to carry out with all reasonable dispatch any such work as aforesaid, shall be liable to a fine not exceeding forty shillings.

36. Subject to the provisions of the special Act with respect to the breaking open of streets, the undertakers may, for the purpose of measuring the quantity of water supplied, or preventing and detecting waste, affix and maintain meters and other apparatus on their mains and service pipes, and may insert in any street, but as near as is reasonably practicable to the boundary thereof, the necessary covers or boxes for giving access and protection thereto, and may for that purpose temporarily obstruct, break open, and interfere with streets, tramways, sewers, pipes, wires and apparatus :

Meters, etc., to measure water or detect waste.

Provided that the undertakers shall not under the powers of this section interfere with—

- (a) any telegraphic line belonging to or used by the Postmaster General, except in accordance with, and subject to, the provisions of the Telegraph Act, 1878 ; or
- (b) any works or apparatus of any electricity undertakers, except in accordance with the provisions of section fifteen of the Electric Lighting Act, 1882, or section seventeen of the Schedule to the Electric Lighting (Clauses) Act, 1899 ; or
- (c) any pipes or apparatus of any gas undertakers, except under the supervision (if given) of an authorised officer of those undertakers and in accordance with plans approved by them or by such officer or in case of any difference as determined by the sheriff.

45 & 46 Vict.
c. 56.
62 & 63 Vict.
c. 19.

PART VIII.

POLLUTION OF WATER BY MANUFACTURE OF GAS, ETC.

37. Any person engaged in the manufacture or supply of gas, whether under statutory authority or not, or in any of the manufactures or trades mentioned in this subsection who—

Provisions as to pollution by liquids resulting from manufacture of gas, etc.

- (a) causes or suffers any washing or other liquid produced in, or resulting from, the manufacture or supply of gas, or the treatment of any residual products of the manufacture of gas, or any product, washing or other substance produced in the manufacture of naphtha, vitriol, paraffin, dye stuffs or other deleterious substance or in any trade in which the refuse

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—cont.

produced in any such manufacture is used, to run or be conducted—

- (i) into, or into any drain communicating with, any stream, reservoir, aqueduct or other waterworks belonging to the undertakers ; or
- (ii) into any depression in the ground or excavation in such proximity to any spring, well or adit belonging to the undertakers that contamination of water there is reasonably probable ; or
- (b) wilfully does any other act connected with the manufacture or supply of gas or the treatment of any such residual products as aforesaid, or connected with any of the other manufactures or trades specified as aforesaid whereby any water of the undertakers is fouled,

shall be liable—

- (a) on summary conviction to a fine not exceeding fifty pounds and to a further fine not exceeding ten pounds for each day during which his offence continues after conviction therefor ; or
- (b) on conviction on indictment to imprisonment for a period not exceeding three months or to a fine not exceeding two hundred pounds and to a further fine not exceeding twenty pounds for each such day as aforesaid.

Provision as
to pollution
by gas.

38. If water belonging to the undertakers is fouled by gas belonging to any person manufacturing or supplying gas, he shall be liable to a fine not exceeding twenty pounds, and to a further fine not exceeding ten pounds for each day during which his offence continues after conviction therefor.

Power to
examine pipes
and other
works to
ascertain source
of pollution.

39.—(1) For the purpose of ascertaining whether water belonging to them is being fouled by gas or otherwise, the undertakers may open the ground, and examine any pipes or other works from which they have reason to suspect that their water is being fouled :

Provided that, before proceeding so to do, they shall give twenty-four hours' notice of the time at which the examination is intended to take place both to the owners of the pipes or other works and also to the persons having the control or management of the street or other place where they propose to open the ground, and shall be subject to the like obligations and liable to the same penalties in relation to reinstatement, maintenance and other matters as those to which they are subject and liable when breaking open streets for the purpose of laying water pipes.

(2) If, upon such examination as aforesaid, it appears that water of the undertakers has been fouled by gas or otherwise from pipes or other works, the undertakers may recover from the owner of such pipes or other works as a civil debt the expenses reasonably incurred by them in connection with the examination and the repair of the street or place disturbed in the examination, but otherwise the undertakers shall pay all expenses of the examination and repair, and shall also make good to the said owner any injury which may be occasioned to his pipes or other works by the examination.

The amount of the expenses of any such examination and repair, and of any injury so occasioned, shall in case of dispute be determined by arbitration.

PART IX.

GENERAL AND MISCELLANEOUS.

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—cont.

40. A consumer who wishes the supply of water to his premises to be discontinued shall give not less than twenty-four hours' notice to the undertakers. Notice of discontinuance.

41. The undertakers before commencing to execute repairs or other work which will cause any material interference with the supply of water shall, except in a case of emergency, give to all consumers likely to be affected such notice as is reasonably practicable and shall complete the work with all reasonable dispatch. Duty of undertakers to give notice of certain works.

42. A person who wilfully obstructs any person acting in the execution of the special Act or of any byelaw or warrant made or issued thereunder shall be liable to a fine not exceeding five pounds and to a further fine not exceeding five pounds for each day on which the offence continues after conviction therefor. Penalty for obstructing execution of special Act.

43.—(1) Save as otherwise expressly provided, all offences and fines under the special Act or any byelaws made thereunder may be prosecuted and recovered under the Summary Jurisdiction (Scotland) Acts. Proceedings for offences.

(2) Any offence under the special Act or under any byelaws made thereunder (other than an offence in respect of which, if it is continued, a further penalty may be imposed) for which the maximum penalty that may be imposed does not exceed ten pounds may be prosecuted in any court of summary jurisdiction within the meaning of the Summary Jurisdiction (Scotland) Act, 1908, having jurisdiction in the place where the offence was committed.

44. In any case where no express provision with respect to compensation is made by the special Act, the undertakers shall pay to the owners and occupiers of, and all other persons interested in, any lands or streams taken or used for the purposes of that Act, or injuriously affected by the construction or maintenance of the works thereby authorised or otherwise by the execution of the powers thereby conferred, compensation for the value of the lands or streams so taken or used and for all damage sustained by those owners, occupiers and other persons by reason of the exercise as to those lands and streams of the powers conferred on the undertakers by the special Act or any Act incorporated therewith. Liability of undertakers to pay compensation.

The amount of such compensation shall, in case of dispute, be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

45.—(1) Subject to the provisions of this section and to any provisions of the special Act empowering the undertakers to execute works specified therein, nothing in the special Act shall authorise the undertakers without the consent of the navigation authority concerned— Protection for works of navigation authorities and for railways.

- (a) to interfere with any river, canal, dock, harbour, basin, lock or reservoir so as injuriously to affect navigation thereon or the use thereof or the access thereto, or to interfere with any towing path so as to interrupt the traffic thereon ;

4TH SCH.
—cont.

- (b) to interfere with any bridge crossing any river, canal, dock, harbour or basin ;
- (c) to execute any works in, across or under any dock, harbour, basin, wharf, quay or lock, or any land which belongs to a navigation authority and is held or used by them for the purposes of their undertaking ;
- (d) to execute any works which will interfere with the improvement of or the access to any river, canal, dock, harbour, basin, lock, reservoir, or towing path or with any works pertaining thereto or any land necessary for the enjoyment or improvement thereof ;

or, without the consent of the railway company concerned, to execute any works along, across or under any railway of a railway company :

Provided that consent under this section shall not be unreasonably withheld, and any question as to whether or not consent is unreasonably withheld shall be determined by arbitration.

(2) Upon an arbitration under this section, the arbiter shall determine—

- (i) whether any works which the undertakers propose to execute are such works as under the last foregoing subsection they are not entitled to execute without consent ; and
- (ii) if they are such works, whether the injury, if any, to the navigation authority or railway company will be of such a nature as to admit of being fully compensated by money ; and
- (iii) if the works are of such a nature, the conditions, including conditions of a financial character with respect to the payment of compensation, future liabilities and otherwise, subject to which—
 - (a) the navigation authority or railway company shall, if they so elect, carry out the works on behalf of the undertakers ; or
 - (b) in default of such election, the undertakers may themselves carry out the works.

If the arbiter should determine that the proposed works are such works as the undertakers are not entitled to execute without consent and that the works would cause injury to the navigation authority or railway company of such a nature as not to admit of being fully compensated by money, the undertakers shall not proceed to execute the works, but in any other case they may execute the works, subject to compliance with such conditions, including the payment of such compensation, as the arbiter may have determined.

(3) For the purposes of this section, a navigation authority shall be deemed to be concerned with any river, canal, dock, harbour, basin, lock, reservoir, towing path, wharf, quay or land if it belongs to them and forms part of their undertaking or if they have statutory rights of navigating on or using it or of demanding tolls or dues in respect of navigation thereon or the use thereof.

(4) Nothing in this section shall be construed as limiting the powers of the undertakers under the special Act in respect of the opening and breaking up of streets and bridges.

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—cont.

46. The undertakers shall, at all times after the expiration of six months from the date on which the special Act was passed or made, keep at their principal office a copy thereof printed by the printers to His Majesty, and shall also within the said six months deposit such a copy with the sheriff clerk of every county or other area and with the clerk of the local authority of every district within which they supply, or propose to supply, water or have or propose to construct any waterworks.

Copies of special Act to be kept by undertakers in their office, and deposited with certain officers.

FIFTH SCHEDULE.

ENACTMENTS REPEALED.

Section 87.

Session and Chapter.	Short Title.	Extent of Repeal.
10 & 11 Vict. c. 17.	The Waterworks Clauses Act, 1847.	The whole Act.
26 & 27 Vict. c. 93.	The Waterworks Clauses Act, 1863.	The whole Act.
33 & 34 Vict. c. 70.	The Gas and Water Works Facilities Act, 1870.	The whole Act, so far as it relates to water.
36 & 37 Vict. c. 89.	The Gas and Water Works Facilities Act, 1870, Amendment Act, 1873.	The whole Act, so far as it relates to water.
54 & 55 Vict. c. 52.	The Public Health (Scotland) Amendment Act, 1891.	Section five.
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	In section forty-five the words "or water" and the words "conduits or". In section two hundred and forty-six the words "into which water has not been already introduced" and the words from "introduce water thereto" to "shall also subject as aforesaid." In section two hundred and fifty-seven the words from "and the Commissioners" to the end of the section. Sections two hundred and fifty-eight to two hundred and sixty-nine. In section three hundred and sixteen in part B paragraph (3).

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—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
60 & 61 Vict. c. 38.	The Public Health (Scotland) Act, 1897.	Sections one hundred and twenty-four to one hundred and thirty. Section one hundred and thirty-two. Section one hundred and thirty-seven. Section one hundred and forty. In section one hundred and forty-two the words "or of section one hundred and forty". In section one hundred and forty-four the words "or supply of water to."
1 Edw. 7. c. 24.	The Burgh Sewerage, Drainage, and Water Supply (Scotland) Act, 1901.	In section one the words "or water supply". In section two the words from "The sewer assessment and the water assessment together" to "the Local Government Board for Scotland." In section four subsections (2), (3) and (5). In section five the words "or water supply" wherever they occur, the words "and one hundred and thirty-one," the words "or water assessment" wherever they occur and the words "as the case may be" where they first occur. In section six subsection (2). The whole Act.
1 & 2 Geo. 5. c. 30.	The Public Health (Scotland) Act (1897) Amendment Act, 1911.	Section forty.
9 & 10 Geo. 5. c. 60.	The Housing, Town Planning, &c. (Scotland) Act, 1919.	In subsection (6) of section fourteen the word "water." In section thirty-four the words "a water supply or of"
19 & 20 Geo. 5. c. 25.	The Local Government (Scotland) Act, 1929.	In section one the words "and in section one hundred and forty", the word "respectively," the words "and for water supply" and the words "or of section one hundred and forty".
25 & 26 Geo. 5. c. 36.	The Public Health (Water and Sewerage) (Scotland) Act, 1935.	

Session and Chapter.	Short Title.	Extent of Repeal.
1 & 2 Geo. 6. c. 38.	The Housing (Agricultural Population) (Scotland) Act, 1938.	In section eleven the words "section one hundred and twenty-five of the Public Health (Scotland) Act, 1897, or" wherever they occur.
7 & 8 Geo. 6. c. 26.	The Rural Water Supplies and Sewerage Act, 1944.	Section twelve. Section three and in section seven, paragraph (3).

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